

QFCA RULES

VERSION NO. 19 - FEBRUARY 2025



مركز قطر للمال
QATAR FINANCIAL CENTRE

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PART 1 – APPLICATION, INTERPRETATION AND DEFINITIONS

1. APPLICATION

The rules set out herein shall be referred to as the QFCA Rules. These QFCA Rules are made pursuant to Article 12 of the QFC Authority Regulations.

The QFCA Rules shall apply to all Licensed Firms and where specified in Table 1 below to Authorised Firms in respect of a Relevant Requirement. The QFCA Rules also apply to Applicants, as relevant, and references to Licensed or Authorised Firms shall include, where the context requires, Applicants to become Licensed or Authorised Firms. If the context requires, these rules also apply to a Person.

TABLE 1: QFCA RULES APPLICABLE TO AUTHORISED FIRMS

PART/RULES
Part 2: General Rules Rule 3.3, 5, 6, 7, 8A and 10.7
Part 5: Compliance and Enforcement Rules

2. INTERPRETATION

In the QFCA Rules, a reference to:

- (A) a provision of any law, regulation or rule includes a reference to that provision as amended or re-enacted from time to time;
- (B) a calendar year shall mean a year of the Gregorian calendar;
- (C) a month shall mean a month of the Gregorian calendar;
- (D) the masculine gender includes the feminine and the neuter;
- (E) writing includes any form of representing or reproducing words in legible form; and
- (F) a Person is, where the context permits, to any Person in respect of which the QFCA has jurisdiction under or pursuant to the QFC Law or Regulations or Rules or whose conduct or activities are or may be subject to the QFC Law, Regulations or Rules.

The headings in the QFCA Rules shall not affect its interpretation.

A reference in a rule or other part or Schedule of the QFCA Rules to a paragraph, sub-paragraph or rule by number or letter only, and without further identification, is a reference to a paragraph, sub-paragraph or rule of that number or letter contained in the rule or other part or Schedule of the QFCA Rules in which that reference occurs.

Each of the Schedules to the QFCA rules shall have effect as if set out in the QFCA Rules and reference to QFCA Rules shall include reference to the Schedule.

Any reference in QFCA Rules to “include”, “including”, “in particular”, “for example”, “such as” or similar expressions shall be considered as being by way of illustration or emphasis only and are not to be construed so as to limit the generality of any words preceding them.

Footnotes in QFCA Rules are not binding.

3. DEFINITIONS

“Accountancy” refers to the corresponding subcluster of business activities that an entity may be licensed or registered to carry on in accordance with the Non-Regulated Activities Rules.

“Accreditation” refers to the corresponding cluster of business activities that an entity may be licensed or registered to carry on in accordance with the Non-Regulated Activities Rules.

“Activities of LLC(G)s” refers to the corresponding cluster of business activities that an entity may be licensed to carry on in accordance with the Non-Regulated Activities Rules.

“AML/CFT Law” means Law No. (20) of 2019 on Combating Money Laundering and Terrorism Financing.

“AML/CFT Rules” means the Anti-Money Laundering and Combating Terrorist Financing Rules 2010 of the QFC Regulatory Authority as amended from time to time.

“Applicant” means a Person submitting an Application.

“Application” means an application:

- (A) for a QFCA Licence or variation or withdrawal of a QFCA Licence or QFC Regulatory Authority Authorisation;
- (B) for an approval of a Person to undertake a specified function, including the appointment of a Person as a Key Person or Interest Holder; or
- (C) for Guidance or a waiver (or revocation or variation of a waiver) of Rules as the context requires.

“Authorised Firm” means a person authorised by the QFC Regulatory Authority to engage in Regulated Activities as set forth in Article 23 of QFC Financial Services Regulations.

“Business Day” means any day which is not a Friday, a Saturday or a public holiday in the State of Qatar.

“CER Rules” means the Compliance and Enforcement Rules set out in Part 5 of these QFCA Rules.

“Client” means any person who enters into a transaction with a Licensed Firm in respect of a Non-Regulated Activity, including the receipt of advice and any other business or service undertaken by a Licensed Firm in the course of carrying out a Non-Regulated Activity in or from the QFC.

“Client Money” means all money held or received by a Licensed Firm:

- (A) from or on behalf of a Client in the course of or in connection with the carrying on of a Non-Regulated Activity in or from the QFC; or
- (B) which a Licensed Firm treats as Client Money in accordance with LFAR.

“COB Rules” means the conduct of business rules set out in Part 3 of these QFCA Rules.

“CRO” means the Companies Registration Office established pursuant to Article 7 of the QFC Law.

“Eligible Bank” means a Person that is an Authorised Firm with an authorisation for deposit taking, or a person in relation to whom all of the following requirements are satisfied:

- (A) the Person is incorporated in a jurisdiction outside the QFC;
- (B) the Regulatory Authority has not, by notice, declared that this definition does not apply to the jurisdiction;
- (C) the Person is regulated as a bank, and principally regulated for prudential purposes, by an overseas regulator in the jurisdiction;
- (D) the Person is required to prepare audited accounts;
- (E) the Person has minimum assets of US \$10 million (or its equivalent in any other currency at the relevant time);
- (F) the Person had surplus revenue over expenditure for the Person’s last 2 financial years; and
- (G) the Person’s latest annual audit report is not materially qualified.

“Entity” means a body corporate or partnership or unincorporated association carrying on business with a view to a profit.

“Financial Services Regulations” means the QFC Financial Services Regulations No. (1) of 2005.

“Firm-Related Distribution Event”, for a Licensed Firm, means:

- (A) the appointment of a liquidator, receiver or administrator or of a trustee in bankruptcy; or
- (B) an event in any jurisdiction equivalent to an appointment mentioned in paragraph (A); or
- (C) the withdrawal or cancellation by the QFCA of the Licensed Firms' Licence; or
- (D) the imposition or variation of a condition, restriction or requirement on the Licensed Firms' Licence so that it is no longer permitted to hold Client Money.

“General Rules” means the general rules set out in Part 2 of these QFCA Rules.

“Group” means with respect to an Entity:

- (A) that Entity;
- (B) any parent Entity of the Entity; and
- (C) any subsidiary (direct or indirect) of that Entity or of any parent Entity of that Entity.

“Guidance” means guidance issued, or to be issued, by the QFC Authority under Article 14 of the QFC Authority Regulations.

“Legal Services” refers to the corresponding cluster of business activities that an entity may be licensed or registered to carry on in accordance with the Non-Regulated Activities Rules.

“LFAR” means Licensed Firm Asset Rules set out in Part 4 of these QFCA Rules.

“Licensed Firm” means a person licensed by the QFCA to engage in Non-Regulated Activities in or from the QFC, and that is not an Authorised Firm.

“Local Licensed Firm” means a Licensed Firm incorporated in the QFC.

“MLRO” means the Licensed Firm’s money laundering reporting officer.

“Non-Local Licensed Firm” means a Licensed Firm established outside the QFC and operating through a branch in the QFC.

“Non-Regulated Permitted Activities” mean the activities listed in Part 2 of Schedule 3 of the QFC Law.

“Non-Regulated Activities” means, in addition to Structure-Based Activities, the activities listed in these rules.

“Objectives” mean the Objectives of the QFCA pursuant to Article 6 of the QFC Authority Regulations.

“Ordinary Business Hours”, on a day means between 8 am and 5 pm or as amended by the QFCA from time to time.

“Operating a Token Exchange” has the meaning set out in the Digital Asset Regulations 2024.

“Person” means a natural person or legal person including body corporate, or body unincorporated, a branch, company, partnership, trust, unincorporated association or other undertaking, arrangement, government or state.

“Private Credit Rating” refers to the corresponding cluster of business activities that an entity may be licensed or registered to carry on in accordance with the Non-Regulated Activities Rules.

“Protected Item” means a communication between a professional legal adviser and his Client or any Person representing his Client, which is made either in connection with the giving of legal advice to the Client or in connection with, or in contemplation of, legal proceedings (including the exercise of powers by the QFCA under relevant Regulations, or in proceedings before the Relevant Review Body) and for the purposes of those proceedings.

“QFC” means the Qatar Financial Centre.

“QFCA” means the Qatar Financial Centre Authority.

“QFC Law” means Law No. (7) of Year 2005.

“QFCA Licence” means a licence to operate in the QFC issued by the QFCA pursuant to Article 11.1 of the QFC Law.

“QFCA Rule” means any rules made by the QFCA pursuant to Article 12 of the QFC Authority Regulations.

“QFC Authority Regulations” means the QFC Authority Regulations, No. 9 of 2005, as amended from time to time.

“Registered Functions” has the meaning set out in General Rule 11.

“Registered Functions Notice” means a notice relating to a change in Registered Function of a Licensed Firm as required under General Rule 12.2.

“Regulations” means Regulations enacted by the Minister in accordance with Article 9 of the QFC Law.

“Regulatory Authority” means the Regulatory Authority of the QFC established in accordance with Article 9 of the QFC Law.

“Relevant Requirement” has the meaning set out in CER 6.1 in relation to Regulations or rules administered by the QFCA.

“Relevant Review Body” has the meaning set out in the CER Rule 3.1.2.

“Rules” means Rules made by the QFCA under the Regulations pursuant to which the QFCA has power to make rules, including, where the context permits, standards, principles and codes of practice.

“Senior Executive Function” has the meaning set out in General Rule 11.3.

“Ship Broking and Shipping Agents” refers to the corresponding clusters of business activities that an entity may be licensed or registered to carry on in accordance with the Non-Regulated Activities Rules.

“Signed” means bearing the physical signature or electronic signature of the Licensed Firm’s or Authorised Firm’s authorised signatory.

“Single Family Office Regulations” means the QFC Single Family Office Regulations, No. 16 of 2012, as amended from time to time.

“Structure-Based Activities” means the activities listed in the Foundation Regulations 2016, the Investment Clubs Regulations 2016, the Single Family Office Regulations, and the Special Company Regulations.

“Support Service Provider” means an entity licensed or approved to carry out Support Service Provider activities in or from the QFC in accordance with the Non-Regulated Activities Rules.

“Tax Consultancy” refers to the corresponding cluster of business activities that an entity may be licensed or registered to carry on in accordance with the Non-Regulated Activities Rules.

“Third Party-Related Distribution Event” for an Eligible Bank means:

(A) the appointment of a liquidator, receiver or administrator, or of a trustee in bankruptcy; or

(B) an event in any jurisdiction equivalent to an appointment mentioned in paragraph (A).

"Token Service Provider" or **"TSP"** means a firm providing any one or more of the following services:

(A) Operating a Token Exchange;

(B) Token Custody Services;

(C) Token Generation;

(D) Token Transfer Services; or

(E) Validation.

"Token" has the meaning set out in the Digital Asset Regulations 2024.

"Token Custody Services" has the meaning set out in the Digital Asset Regulations 2024.

"Token Generation" has the meaning set out in the Digital Asset Regulations 2024.

"Token Services" has the meaning set out in the Digital Asset Regulations 2024.

"Token Transfer Services" has the meaning set out in the Digital Asset Regulations 2024.

"Validation" has the meaning set out in the Digital Asset Regulations 2024.

PART 2 – GENERAL RULES

1. APPLICATION

The QFCA Rules in Part 2 shall be referred to as the General Rules and shall apply to all Licensed Firms, and where specified herein to Authorised Firms in respect of a Relevant Requirement.

2. LICENCE TO CONDUCT NON-REGULATED ACTIVITIES

2.1 APPLICATION

This General Rule 2 applies only to Licensed Firms.

2.2 GENERAL CONDUCT

In order to become and remain a Licensed Firm, a Person shall ensure it is and remains fit and proper and complies with any Regulations and Rules as well as the QFCA Rules that may apply to the particular type of Non-Regulated Activities undertaken and shall conduct itself at all times in a manner that (A) reflects and promotes the spirit, purpose and Objectives of the general principles set out in Schedule 1 (the "Principles"), and (B) does not harm or hinder the QFCA in achieving its Objectives, strategies and priorities.

2.3 REJECTION OF LICENCE APPLICATION

Pursuant to Article 21(1) of the QFCA Regulations, the QFCA shall have the discretion and power to reject an Application if the QFCA considers, after review of the Application, that the Application does not meet the Objectives, strategies and priorities set by the QFCA from time to time (including, but not limited to, the consideration of the existing number and composition of Licensed Firms in the QFC), taking into account the matters set out in Article 21(2) of the QFCA Regulations.

2A. MIGRATION OF BODY CORPORATE TO THE QFC

2A.1 TRANSFER OF REGISTRATION TO THE QFC

2A.1.1 A Non-QFC Company may, if authorised by the laws of the jurisdiction in which it was incorporated, apply to the CRO for the continuation of the Non-QFC Company as a QFC Entity that is not a Company (as defined in the Companies Regulations).

2A.1.2 An application for continuation must be made to the CRO using the form prescribed by the CRO and must be:

- (A) executed under seal and signed by an officer or director of the Non-QFC Company and verified by an affidavit of the person signing the application;
- (B) accompanied by articles of continuation that comply with the relevant provisions of the QFC regulations and rules; and
- (C) accompanied by any other document prescribed by the CRO.

2A.1.3 The Non-QFC Company must make any amendments to the original articles of incorporation that are necessary to make the articles of continuation conform to the relevant provisions of the QFC's regulations and rules.

2A.1.4 For the purpose of this Rule 2A, articles of association means the Non-QFC Company's updated constitutional document registered in the jurisdiction from where it is migrating, and articles of continuation means the Non-QFC Company's updated constitutional document amended as described in Rule 2A.1(3) above.

2A.2 CERTIFICATE OF CONTINUATION AND LICENCE CERTIFICATE

2A.2.1 Should the CRO approve the application, the CRO will:

- (A) issue a certificate of continuation on the terms and conditions it considers appropriate;
- (B) register the Non-QFC Company as a QFC Entity; and
- (C) allocate to the QFC Entity a number, which shall be the QFC Entity's registered number.

2A.2.2 On or after its registration, the QFC Authority may issue a licence to the QFC Entity, to conduct one or more Non-Regulated Activities which correspond most closely to the activities the non-QFC Company was licensed or permitted to conduct in the original jurisdiction.

2A.2.3 The CRO may refuse to issue a certificate of continuation if it considers it appropriate to do so.

2A.2.4 The CRO is not required to provide reasons for refusing to issue a certificate of continuation.

2A.3 EFFECT OF CERTIFICATE

From the date of continuation stated in the certificate of continuation:

2A.3.1 the Non-QFC Company becomes a QFC Entity to which the QFC regulations and rules apply as if it has been incorporated or established in the QFC;

2A.3.2 the articles of continuation become the constitutional document of the QFC Entity; and

2A.3.3 the certificate of continuation is treated as the certificate of incorporation or certificate of establishment, as the case may be, of the QFC Entity.

2A.4 COPY OF CERTIFICATE OF CONTINUATION

The CRO will send a copy of the certificate of continuation to the appropriate official or public body in the jurisdiction in which the application for continuation was authorised.

2A.5 RIGHTS AND LIABILITIES

Where a Non-QFC Company is continued as a QFC Entity under this Rule, the QFC Entity:

2A.5.1 continues to have all the property, rights and privileges and is subject to all the liabilities, disabilities and debts that it had before the continuation; and

2A.5.2 remains a party in any legal proceedings commenced in any jurisdiction in which it was a party before the continuation.

2A.6 APPLICATION

2A.6.1 An application pursuant to this Rule 2A must be accompanied by:

- (A) the articles of continuation as required in Rule 2A.1(3), together with:
 - (i) a certified copy of the Non-QFC Company's current certificate of incorporation or document of similar effect and any amendments thereto; and
 - (ii) a certified copy of the Non-QFC Company's articles of association or other constitutional document of similar effect and any amendments thereto;
- (B) evidence satisfactory to the CRO that the Non-QFC Company is permitted by the laws of the jurisdiction in which it is incorporated to be continued under the laws of another jurisdiction and that it has complied with all the relevant requirements;
- (C) evidence satisfactory to the CRO that all necessary consents in the original jurisdiction of incorporation, including but not

limited to any necessary consent of shareholders or its equivalents, have been obtained and certified;

- (D) a copy of the Non-QFC Company's most recent audited accounts filed with the relevant authority in the jurisdiction in which it is incorporated or otherwise to the satisfaction of the CRO; and
- (E) the relevant prescribed fee prescribed in Schedule 4.
- (F) If any documents submitted to the CRO are not in the English language, the documents must be accompanied by a certified English translation.
- (G) A Non-QFC Company must not apply to the CRO under this Rule 2A, unless the directors or members of its governing body have filed with the CRO a declaration that:
 - (1) the Non-QFC Company is solvent;
 - (2) at the time of the application, there is no reasonable prospect of the Non-QFC Company becoming insolvent; and
 - (3) there are no applications made to any court:
 - (a) to put the Non-QFC Company into liquidation;
 - (b) to wind up the Non-QFC Company;
 - (c) to have the Non-QFC Company declared insolvent; or
 - (d) for the appointment of a receiver in relation to any property of the Non-QFC Company.

2A.6.2 A Non-QFC Company which conducts an activity that is a regulated activity under the Financial Services Regulations and wishes to transfer its incorporation to the QFC and be continued as a QFC Entity under this Rule 2A must obtain the prior written consent of the Regulatory Authority.

2A.6.3 A certificate of continuation is conclusive evidence that the Non-QFC Company is a duly registered QFC Entity from the date of continuation stated in the certificate.

2A.6.4 Where a Non-QFC Company is continued as a QFC Entity, the QFC Entity must file with the CRO any certificate or document issued under the laws of the jurisdiction of the Non-QFC Company evidencing the fact the Non-QFC Company has ceased to be incorporated under the laws of that jurisdiction.

2B. MIGRATION OF BODY CORPORATE FROM THE QFC

2B.1 TRANSFER OF REGISTRATION FROM THE QFC TO ANOTHER JURISDICTION

2B.1.1 A Licensed Firm that is not a Company (as defined in the Companies Regulations) may, if it is authorised by:

(A) a decision of its governing body approved by not less than two third of its members; and

(B) the CRO,

apply to the appropriate official or public body of a foreign jurisdiction to transfer its incorporation to the foreign jurisdiction and request that the Licensed Firm be continued as a Non-QFC Company.

2B.1.2 A Licensed Firm may not apply under this Rule 2B unless the laws of the foreign jurisdiction provide that the Licensed Firm will:

(A) continue to have all the property, rights and privileges and is subject to all the liabilities, disabilities and debts that it had before the continuation; and

(B) remain a party in any legal proceedings commenced in any jurisdiction in which it was a party before the continuation.

2B.1.3 A Licensed Firm ceases to be a QFC Entity when the QFC Entity is continued as a Non-QFC Company and when it files with the CRO a copy of the certificate or instrument of continuation certified by the appropriate official of the foreign jurisdiction.

2B.1.4 When the CRO receives the foreign jurisdiction's certificate or instrument of continuation, the CRO must strike the name of the Licensed Firm off the index of names maintained by the CRO.

2B.1.5 The CRO may refuse to authorise a Licensed Firm to apply to transfer its incorporation to a foreign jurisdiction and be continued as a Non-QFC Company under this Rule 2B.

2B.2 APPLICATION

2B.2.1 A Licensed Firm, must apply in writing to the CRO and such application must be accompanied by:

(A) a certified copy of the decision of its governing body approving that the Licensed Firm may transfer its incorporation to a foreign jurisdiction and be continued as a Non-QFC Company;

(B) evidence acceptable to the CRO that:

(i) the Licensed Firm is able to transfer its incorporation and be continued under the laws of the other jurisdiction; and

(ii) the laws of the other jurisdiction satisfy the requirements set out in this Rule 2B;

(C) the Regulatory Authority's written consent if the Licensed Firm is a designated non-financial business or profession (within the meaning of the AML/CFT Rules);

(D) any declaration, certification, information, document or confirmation as the CRO may require; and the relevant fee prescribed in Schedule 4.

2B.2.2 A Licensed Firm must not apply to the CRO under Rule 2B unless the members of its governing body have filed with the CRO a declaration that:

(A) the Licensed Firm is solvent;

(B) at the time of the application, there is no reasonable prospect of the Licensed Firm becoming insolvent; and

(C) there are no applications made to any court:

- i. to put the Licensed Firm into liquidation;
- ii. to wind up the Licensed Firm;
- iii. to have the Licensed Firm declared insolvent; or
- iv. for the appointment of a receiver in relation to any property of the Licensed Firm.

2B.2.3 A Licensed Firm making an application under Rule 2B must place a legible and comprehensible notice 60 days prior to making such an application in one or more newspapers or other publication best suited to bring the proposed transfer of incorporation to the attention of any persons who may be affected by such transfer.

3. GENERAL PROVISIONS

3.1 APPLICATION

This General Rule 3 applies to a Licensed Firm and where specified, to an Authorised Firm in respect of a Relevant Requirement.

3.2 DISCLOSURE OF LICENSED STATUS

3.2.1 A Licensed Firm must not misrepresent its status expressly or by implication.

3.2.2

- (A) A Licensed Firm must take reasonable care to ensure that all business documents in connection with the carrying on of Non-Regulated Activities in or from the QFC include one of the disclosures in General Rule 3.2.2 (C).
- (B) The expression "business documents":
 - (i) includes, but is not limited to, letterheads, whether issued by post, fax or electronic means, terms of business, Client agreements, written financial communications, business cards, prospectuses and websites; but
 - (ii) does not include compliment slips, account statements or text messages.
- (C) The disclosure required under this General Rule is:
 - (i) "Licensed by the Qatar Financial Centre Authority"; or
 - (ii) "Licensed by the QFCA".
- (D) The QFCA logo must only be reproduced with the express written permission of the QFCA and in accordance with any conditions for use issued from time to time.

3.3 COMMUNICATION WITH THE QFCA AND THE CRO

- 3.3.1 Without prejudice to any other provision of these Rules all communications made by a Licensed or Authorised Firm to the QFCA or the CRO whether pursuant to any Regulations, Rules, or otherwise shall be made by an employee (officer or otherwise) of the Licensed or Authorised Firm authorised to make such communication to the QFCA or the CRO and shall be in English unless otherwise permitted by the QFCA or the CRO.

All internal procedures, records or other documentation created by the Licensed or Authorised Firm shall be in English.

3.3.2

- (A) The QFCA may operate an electronic submission system (Electronic System) to allow Licensed Firms, Authorised Firms, or other Persons approved in writing by the QFCA (Registered Users) to communicate with it or with the CRO, to produce documents and information in an electronic form. The QFCA may issue instructions for, amongst other things:
 - (i) access to, guidelines concerning and the use of the Electronic System;

- (ii) QFCA's approval of any individuals nominated to access and use the Electronic System on behalf of a Registered User;
 - (iii) withdrawal of access to Registered Users or any individual previously approved to access and use the Electronic System on behalf a Registered User; and
 - (iv) measures that the QFCA considers necessary or desirable to maintain the integrity and security of the Electronic System.
- (B) The Registered User must ensure that:
- (i) only suitable individuals have access to the Electronic System;
 - (ii) individuals who have access to the Electronic System follow the usage instructions and use the Electronic System properly;
 - (iii) it has adequate policies, procedures, systems and controls to comply with this Rule 3.3; and keep necessary records; and
 - (iv) it and its directors, officers, employees, agents and contractors do not do, or fail to do, anything that compromises the integrity or security of the Electronic System.
- (C) If a communication is made to the QFCA or the CRO using the Electronic System, the communication will be deemed to have been made at the time it is received by the QFCA or the CRO; and for the purposes of these Rules, to have been Signed and made in writing.
- (D) This rule is additional to, and does not limit, the generality of Rule 3.3.1 (Communication with the QFCA and the CRO), any other provision of these Rules or any other Rules.

3.4 COMPLAINTS AGAINST THE QFCA

Without prejudice to the rights set out at Article 25 of the QFCA Regulations, the QFCA shall make arrangements for the prompt, efficient, impartial and independent investigation of complaints made against it arising out of the exercise, or failure to exercise, any of its functions under Articles 19 or 21 of the QFCA Regulations.

3.5 REGISTERS OF PUBLIC INFORMATION

- 3.5.1 The QFCA shall make public its register of Licensed Firms licensed to conduct Non-Regulated Activities including a register of individuals undertaking a Registered Function at a Licensed Firm.
- 3.5.2 The QFCA registers will be maintained in electronic form in English and extracts of the registers will also be made available at the premises of the QFCA during normal business hours, upon application and payment of the prescribed fee set forth in Schedule 4 (Fees) or otherwise prescribed by notice.

3.6 PROVISION OF INFORMATION

An extract of information from the registers maintained by the QFCA under General Rule 3.5, in relation to any particular Licensed Firm and individuals undertaking Registered Functions, upon application and payment of the prescribed fee, is prima facie evidence of the matters stated in it.

4. NOTICES TO THE QFCA

4.1 APPLICATION

This General Rule 4 applies to Licensed Firms.

4.2 PROVISION OF NOTIFICATIONS

- 4.2.1 Unless a QFCA Rule states otherwise, a Licensed Firm must ensure that each notification it provides to the QFCA:
 - (A) is in writing and contains the Licensed Firm's name, QFC number and any additional information required by the QFCA; and
 - (B) is submitted on any relevant QFC Form or Electronic System operated by the QFCA.
- 4.2.2 A notification must be submitted to the QFCA:
 - (A) by electronic mail at the address provided by the QFCA or in the Electronic System operated by the QFCA; and
 - (B) duly Signed by the signatories specified in the relevant QFCA Rule or as set forth herein and delivered by:

- (i) post to the current address of the QFCA;
- (ii) hand delivery to the current address of the QFCA; or
- (iii) fax to a fax number provided by the QFCA.

4.2.3 Where a QFCA Rule does not specify a specific signatory, any notification or submission of a report must be signed by the individual performing the Senior Executive Function or other authorised signatory of the Licensed Firm.

4.3 CORE DETAILS

4.3.1 A Licensed Firm must provide the QFCA with reasonable advance notice of any change in:

- (A) the Licensed Firm's name;
- (B) the continuation of its business in the QFC;
- (C) the address of the Licensed Firm's principal place of business in the QFC;
- (D) in the case of a branch, its registered office or head office address;
- (E) its legal structure;
- (F) the name of any individual undertaking a Registered Function or any material matters relating to such individual's fitness and propriety; and
- (G) Control, pursuant to General Rule 8.

4.3.2 A Local Licensed Firm must provide the QFCA with prior notice of the establishment or closure of a branch office or a subsidiary anywhere in the world from which it carries on services.

4.4 SIGNIFICANT EVENTS

4.4.1 A Licensed Firm must advise the QFCA immediately if it becomes aware of any matters that have occurred or may occur in the foreseeable future that could materially impact on the Licensed Firm's ability to provide adequate services to its Client and/or to

continue in business and/or have a significant adverse impact on the reputation of the Licensed Firm or of the QFC.

4.5 FRAUD AND ERRORS

4.5.1 A Licensed Firm must notify the QFCA immediately if one of the following events arises in relation to its activities in or from the QFC:

- (A) it becomes aware that an employee may have committed a fraud against one of its Client;
- (B) a serious fraud has been committed against it;
- (C) it has reason to believe that a Person is acting with intent to commit a serious fraud against it; or
- (D) it identifies significant irregularities in its accounting or other records, whether or not there is evidence of fraud.

4.6 ACTION AGAINST A LICENSED FIRM

4.6.1 A Licensed Firm must notify the QFCA immediately if:

- (A) civil proceedings are brought against the Licensed Firm and the amount of the claim is in excess of 20% of the Licensed Firm's financial resources or is significant in relation to its reputation; or
- (B) the Licensed Firm is prosecuted for, or convicted of, any offence involving fraud or dishonesty, or any penalties are imposed on it for tax evasion.

5. REPORTING

5.1 APPLICATION

This General Rule 5 applies to a Licensed Firm and to an Authorised Firm in respect of a Relevant Requirement.

5.2 PROVISION OF REPORTS

5.2.1

- (A) Unless a QFCA Rule states otherwise, a Licensed or Authorised Firm must ensure that each report it provides to the QFCA:
 - (i) contains the Licensed or Authorised Firm's name, the related QFC number and any other information required by the QFCA; and

(ii) subject to (B) is received by the QFCA during Ordinary Business Hours on the date the report is due.

(B) If the due date is not a Business Day, the report must be received by the QFCA during Ordinary Business Hours of the next Business Day.

(C) A report will not be considered to have been received by the QFCA until it has been:

(i) received by the QFCA; and

(ii) duly Signed by the signatories specified in the relevant QFCA Rule and delivered:

(1) by email or Electronic System;

(2) by post to the current address of the QFCA;

(3) hand delivered to the current address of the QFCA; or

(4) faxed to a fax number provided by the QFCA.

5.2.2 Where a QFCA Rule does not specify a specific signatory, the report must be Signed by the individual performing the Senior Executive Function or other authorised signatory of the Licensed Firm.

5.3 SUMMARY OF REPORTING REQUIREMENTS

The reporting requirements relevant to Licensed or Authorised Firms are set out at Schedule 2.

6. RECORD KEEPING

6.1 APPLICATION

This General Rule 6 applies to a Licensed Firm and to an Authorised Firm in respect of a Relevant Requirement.

6.2 GENERAL REQUIREMENTS

6.2.1 A Licensed or Authorised Firm must maintain appropriate records of:

(A) matters and dealings, including accounting records;

(B) policies and procedures; and

(C) other documentation,

which are required under Relevant Requirements.

6.3 MAINTENANCE OF RECORDS

- 6.3.1 A Licensed or Authorised Firm must ensure records, however stored, are capable of reproduction on paper within a reasonable period not exceeding three (3) Business Days.
- 6.3.2 In maintaining records, a Licensed or Authorised Firm must have regard to any requirements for preservation, confidentiality, security and the frequency and ease of access required to records.
- 6.3.3 Subject to General Rule 3.3 the Licensed or Authorised Firm may maintain records created by third parties in any language. If those records are requested by the QFCA they must be reproduced in English within a reasonable period not exceeding three (3) Business Days of the date of the request.
- 6.3.4
 - (A) Where original documents cannot be maintained, copies may be kept, provided they are duly certified copies of the original documents.
 - (B) A document in (A) must be certified by:
 - (i) in the case of a document created or issued or copied by the Licensed or Authorised Firm itself, a director or secretary of the Firm;
 - (ii) in the case of a document issued by a public body responsible for the maintenance of the original document, a Person properly authorised by that public body; or
 - (iii) in any other case, a Person duly authorised to certify official documents in the jurisdiction in which the copy is being certified.
- 6.3.5 Unless otherwise stated in a specific provision, records and documents must be maintained by the Licensed or Authorised Firm for at least six (6) years.

7. WAIVERS AND MODIFICATIONS

7.1 APPLICATION

This General Rule 7 applies to a Licensed Firm and to an Authorised Firm in respect of a Relevant Requirement.

7.2 APPLICATION TO WAIVE OR MODIFY RULES

- 7.2.1 If a Licensed or Authorised Firm wishes to apply for a Waiver or Modification Notice, it must apply in writing to the Legal Department of the QFCA.
- 7.2.2 The application for a Waiver or Modification Notice must contain:
- (A) the Licensed or Authorised Firm's name and the related QFC number;
 - (B) the Relevant Requirement to which the application relates;
 - (C) a clear explanation of the waiver or modification that is being applied for and the reason why the Licensed or Authorised Firm is requesting it;
 - (D) details of any other requirements; for example, if there is a specific period for which the Waiver or Modification Notice is required;
 - (E) any reasons the Licensed or Authorised Firm may have as to why the Waiver or Modification Notice should not be published or why it should be published without disclosing the identity of the Licensed or Authorised Firm or the confidential or propriety nature of certain information; and
 - (F) all relevant facts to support the application.
- 7.2.3 An application for a Waiver or Modification Notice must be Signed by the individual performing the Senior Executive Function or other authorised signatory of the Licensed Firm.
- 7.2.4 A Licensed or Authorised Firm must immediately notify the QFCA if it becomes aware of any material change in circumstances which may affect the application for a Waiver or Modification Notice.

7.3 PROCEDURE ON RECEIPT OF AN APPLICATION

- 7.3.1 The QFCA will acknowledge an application for a Waiver or Modification Notice and may request further information. The time taken to determine the application will depend upon the issues it raises.
- 7.3.2 An application for a Waiver or Modification Notice may be withdrawn at any time up until the giving of the Waiver or Modification Notice. In doing so, a Licensed or Authorised Firm should provide reasons for withdrawing the application.

7.4 CONDITIONS FOR GRANTING A WAIVER OR MODIFICATION

7.4.1 The QFCA must be satisfied, when giving a notice under this General Rule 7 in relation to a Person, that:

(A) either:

(i) the burden experienced by that Person in complying with the Relevant Requirement would significantly outweigh the benefits that the Relevant Requirement was intended to achieve; or

(ii) compliance with the Relevant Requirement would not achieve or further the purpose for which the Relevant Requirement was made; and

(B) the notice would not result in undue risk to Persons whose interests the QFCA Rule is intended to protect.

7.5 APPLICABILITY OF A WAIVER OR MODIFICATION NOTICE

7.5.1 If a Waiver or Modification Notice directs that a Relevant Requirement is to apply to a Licensed or Authorised Firm with modifications, then failure to comply with the modified requirement constitutes a contravention under the QFCA Regulations.

7.5.2 If a Waiver or Modification Notice is given subject to a condition, then failure to comply with the terms and conditions constitutes a contravention under the QFCA Regulations.

7.6 CONTINUING RELEVANCE OF A WRITTEN NOTICE

A Licensed or Authorised Firm must immediately notify the QFCA if it becomes aware of any material change in circumstances which could affect the continuing relevance of a Waiver or Modification Notice.

7.7 PUBLICATION OF A WAIVER OR MODIFICATION NOTICE

7.7.1 Unless the QFCA is satisfied that it is inappropriate or unnecessary to do so, it must publish a Waiver or Modification Notice given under General Rule 7.5 in such a way (including publication on its website) as it considers appropriate for bringing the notice to the attention of:

(A) those likely to be affected by it; and

(B) others who may be likely to become subject to a similar notice.

7.8 REVOCATION OR VARIATION OF A WAIVER OR MODIFICATION NOTICE

The QFCA may on the application of the Person to whom it applies, or on its own initiative:

(A) revoke a written notice; or

(B) vary a written notice.

7.9 REFERRAL OF THE QFCA'S DECISIONS IN RELATION TO A WAIVER OR MODIFICATION NOTICE

Any decision of the QFCA with respect to the granting or refusal of a waiver or modification of a Relevant Requirement may be referred to the Relevant Review Body by the Person to whom the waiver or modification relates (or would relate if granted).

8. OMITTED

8A. ULTIMATE BENEFICIAL OWNERSHIP

8A.1 DEFINITIONS

In Rule 8A:

"Basic Information" means the information as determined and set out in Rule 8A.1A.

"Beneficial Owner" has the meaning set out in Rule 8A.3.

"Civil and Commercial Court" means the Civil and Commercial Court of the QFC established under Article 8 of the QFC Law.

"Foundation" means a foundation established under the Foundation Regulations.

"Governing Body" means

- (a) for a company or a company limited by guarantee, its board of directors;
- (b) for a limited partnership, its general partner;
- (c) for a trust, its trustee or trustees;
- (d) for a foundation, its council; and
- (e) for any other entity, its board of directors, committee of management or other governing body.

"Nominator" means one or more Person that issues directions, instructions or wishes (directly or indirectly) to a nominee to act on their behalf in the capacity of a director or a shareholder.

"Nominee Director" means a Person that acts as a director on behalf of a Nominator or in accordance with the directions, instructions or wishes of a Nominator.

"Nominee Particulars" has the meaning set out in Rule 8A.7(D).

"Nominee Shareholder" means a Person registered as a shareholder:

- (a) on behalf of a Nominator or
- (b) acting on the directions, instructions or wishes of a Nominator.

"QFC Entity" means a Person licensed or registered in the QFC, including a Licensed Firm and an Authorised Firm.

"Register of Basic Information" means the register of Basic Information established pursuant to Rule 8A.4.

"Register of Beneficial Owners" means the register of Beneficial Owners established pursuant to Rule 8A.4.

"Register of Nominees" means the register of nominees established pursuant to Rule 8A.7(C).

"Required Information" has the meaning set out in Rule 8A.6.

"Trust" has the meaning set out in the Trust Regulations 2007.

"Trustee" has the meaning set out in the Trust Regulations 2007.

8A.1A BASIC INFORMATION

- (A) The QFCA will determine the Basic Information in respect of each type of QFC Entity.
- (B) Basic Information must include, at a minimum and as applicable,
 - (i) the QFC Entity's name, proof of its incorporation or registration, its legal form and status, the address of its registered office, its basic regulating powers (such as the articles of association or the memorandum of association), and the names of its directors;
 - (ii) a register of the QFC Entity's shareholders or members, containing, the names of the shareholders or members, number of shares held by each shareholder or member, the category or categories of shares held by each shareholder or member and the nature of any associated voting rights.

8A.2 REQUIREMENT TO DETERMINE BENEFICIAL OWNERS

- (A) A QFC Entity must identify and take reasonable measures to verify the identity of each of its Beneficial Owners.
- (B) In the case of a QFC Entity that is a Trust, all the obligations of a QFC Entity set out in this Rule 8A must be performed by the Trustee of that Trust.
- (C) If a QFC Entity is unable to comply with Rule 8A due to the non-cooperation of any Person associated with such QFC Entity, such QFC Entity may apply to the Civil and Commercial Court for an order to compel performance of such requirements.

8A.3 DEFINITION OF BENEFICIAL OWNER

- (A) A Beneficial Owner is a natural person who ultimately exercises control over a QFC Entity. The Beneficial Owner is:
 - (i) in relation to a company, any Person that:
 - (a) holds or controls, or is entitled to hold or control, directly or indirectly, or by any other means, including acting in concert with one or more Persons, 20% or more of the company's shares;
 - (b) holds or controls, or is entitled to hold or control, directly or indirectly, or by any other means, including acting in concert with one or more Persons, 20% or more of the voting rights in the company;
 - (c) holds or controls, or is entitled to hold or control, directly or indirectly, including through contractual arrangements or by any other means, including acting in concert with one or more Persons, the right to appoint or remove a majority of the board of directors of the company; or
 - (d) has the right to exercise, or exercises by any means, control over the management of the company.
 - (ii) in relation to a company limited by guarantee, any Person that exercises by any means, or has the legal right to exercise, control or influence over the management of the company limited by guarantee, including the chief executive officer or each director.

(iii) in relation to a partnership, any Person that:

- (a) holds or controls, directly or indirectly, including through contractual arrangements, or by any other means, 20% or more of the capital, profits or voting rights of that partnership; or
- (b) has the right to exercise, or exercises by any means, control over the management of the partnership.

(iv) in relation to a trust:

- (a) each beneficiary (or, if a specific Person is not identifiable as a beneficiary, the class of Persons for whose benefit the trust is established);
- (b) the settlor of the trust or each Person performing an equivalent function;
- (c) each trustee of the trust;
- (d) each protector or appointer of the trust (if any); and
- (e) any other Person exercising, by any means, directly or indirectly, ultimate effective control over the trust.

(v) in relation to a foundation:

- (a) each beneficiary (or, if a specific Person is not identifiable as a beneficiary, the class of Persons for whose benefit the foundation is established);
- (b) a founder and, if relevant, a dedicator or each Person performing equivalent function;
- (c) each council member or Person performing an equivalent function; and
- (d) each enforcer, protector or each Person performing an equivalent function.

(B) Where any of the roles in 8A.3(A)(i)-(v) are fulfilled by a legal person or a legal arrangement, the QFC Entity must identify the natural person who ultimately exercises control over such legal person or legal arrangement as the Beneficial Owner, unless Rule 8A.15(A) applies.

(C) A QFC Entity must trace and identify through any number of legal persons or legal arrangements of any description to reach a natural person who is the Beneficial Owner, unless Rule

8A.15(A) applies.

- (D) The term “control” for the purposes of this Rule 8A includes the exercise of effective control as a result of (for example):
 - (i) the terms of the constitutional documents of a QFC Entity or a legal person or legal arrangement in the ownership chain of the QFC Entity;
 - (ii) the rights attached to the shares or securities which a Person holds, whether directly in a QFC Entity or through a legal person or legal arrangement in the ownership chain of the QFC Entity;
 - (iii) a shareholders or partnership agreement or other similar contractual arrangement; or
 - (iv) contractual or other arrangements.
- (E) The right to exercise control is a right which, if exercised, would give rise to the actual exercise of control.
- (F) If 2 or more natural persons jointly meet any of the criteria specified under Rule 8A.3(A)(i)-(v), each of them is taken to be a Beneficial Owner.
- (G) If no natural person is identified as a Beneficial Owner of a QFC Entity, any natural person on whose instructions the QFC Entity is required or is accustomed to act or its senior managing official, is taken to be a Beneficial Owner.

8A.4 OBLIGATION TO MAINTAIN A REGISTER OF BASIC INFORMATION AND A REGISTER OF BENEFICIAL OWNERS

- (A) In addition to the requirements of any other Regulations or Rules, a QFC Entity must establish and maintain at its registered office or principal place of business:
 - (i) a Register of Basic Information; and
 - (ii) a Register of Beneficial Owners.
- (B) The Register of Basic Information and the Register of Beneficial Owners must be held and made accessible at all times during Ordinary Business Hours by:
 - (i) if applicable, the Senior Executive Function,
 - (ii) for a Foundation, the Registered Representative,
 - (iii) for a Single Family Office, the Designated Representative Function,
 - (iv) for a Branch, the Principal Representative,

- (v) for a Trust, the Trustee, or
 - (vi) if there is no individual who performs any of the functions in Rule 8A.4(i) – (v), an individual resident in Qatar with overall responsibility for the conduct of the whole of the business of a QFC Entity.
- (C) The Register of Beneficial Owners must contain the Required Information in relation to each Beneficial Owner of a QFC Entity.
- (D) In relation to a Trust, the Trustee must, in addition to the information specified in Rule 8A.6(A), include in the Register of Beneficial Owners information on each of the agents and service providers to the Trust, including investment advisors or managers, accountants and tax advisors, of the following kind:
- (i) for an agent or service provider that is a natural person:
 - (a) the information listed at 8A.6(A)(i)(a) – (e); and
 - (b) if different from the address provided in Rule 8A.6(A)(i)(e), the main address of the agent or service provider, that provides services to the Trust, from which it conducts its business in respect of the Trust;
 - (ii) for an agent or service provider that is a legal person:
 - (a) the information listed at 8A.6(A)(ii)(a) – (d); and
 - (b) if different from the address provided in Rule 8A.6(A)(ii)(d), the main address of the agent or service provider, that provides services to the Trust, from which it conducts its business in respect of the Trust,
- and such information shall, in relation to such a Trust, be considered “Required Information” for the purposes of this Rule 8A.
- (E) In accordance with applicable laws and regulations, each of the individuals mentioned in Rule 8A.4(B) are responsible for providing the Basic Information, the Nominee Particulars, the Required Information and any assistance required by the competent authorities when requested in a timely manner.

8A.5 NOTIFICATION TO THE CRO

- (A) Omitted.
- (B) A QFC Entity must provide to the CRO details of any change in its:

- (i) Beneficial Owners and the related Required Information; and
 - (ii) if applicable, the Nominee Particulars relating to each of its Nominee Directors and their Nominators and Nominee Shareholders and their Nominators,
- within 30 days of any change to such information.
- (C) The QFCA or the CRO may require the provision of any further information in relation to any change in the information set out in Rule 8A.5 (B).

8A.6 REQUIRED INFORMATION

- (A) The required information is the following (the “**Required Information**”):
- (i) for a Beneficial Owner:
 - (a) full name as it appears on that person’s passport or other government-issued national identification document;
 - (b) place and date of birth;
 - (c) nationality (or, where that person has more than one nationality, each nationality);
 - (d) identifying number, country of issue, date of issue and of expiry, as set out in that person’s passport or other government-issued national identification document;
 - (e) residential address and, if different, an address appropriate for service of notices;
 - (f) the date that the person became and/or ceased to be a Beneficial Owner;
 - (g) any percentage specified in Rule 8A.3 that is held or controlled by that person and the date of any change to such percentage;
 - (h) if control is exercised through means other than direct or indirect ownership of shares or control of voting rights in the relevant QFC Entity, a brief description of the basis on which such person exercises its control;
 - (i) the date on which the Register of Beneficial Owners was last updated; and

- (j) in relation to Trusts, the information specified at Rule 8A.4(D) on agents and service providers (if any).
- (ii) Without prejudice to Rules 8A.3(B) and (C), for a legal person or legal arrangement in the ownership chain of a QFC Entity, Nominee Director, Nominee Shareholder and Nominator that meets any of the criteria under Rule 8A.3(A)(i)-(v):
 - (a) full name as it appears on that legal person's or legal arrangement's certificate of incorporation or establishment or similar document, or any other instrument acceptable to the CRO;
 - (b) the jurisdiction of incorporation, registration authority and associated registration number for the legal person or legal arrangement (or other identifying details);
 - (c) date of incorporation, establishment or registration;
 - (d) the address of record maintained with the commercial registry or similar institution with which the legal person or legal arrangement is incorporated, established or registered;
 - (e) the date that the legal person or legal arrangement became and/or ceased to be a legal person or legal arrangement in the ownership chain of a QFC Entity;
 - (f) any percentage specified in Rule 8A.3 that is held or controlled by that legal person or legal arrangement and the date of any change to such percentage;
 - (g) if control is exercised through means other than direct or indirect ownership of shares or control of voting rights in the relevant QFC Entity, a brief description of the basis on which that legal person or legal arrangement exercises its control; and
 - (h) in relation to Trusts, the information specified at Rule 8A.4(D) on agents and service providers (if any).
- (B) The QFCA or the CRO may require a QFC Entity to take one or both of the following actions:

- (i) obtain, maintain and disclose, in a timely manner, Required Information about any legal person or legal arrangement in the ownership chain of a QFC Entity through which a Beneficial Owner exercises control over a QFC Entity; or
- (ii) submit supporting documentation that demonstrates to the satisfaction of the QFCA or the CRO how the QFC Entity has ensured the accuracy of the Required Information.

8A.7 NOMINEE DIRECTORS, NOMINEE SHAREHOLDERS, NOMINATORS AND THE REGISTER OF NOMINEES

- (A) A Nominee Director or Nominee Shareholder must:
 - (i) inform each QFC Entity in relation to which it acts as nominee, of the fact that it is a Nominee Director or Nominee Shareholder (as the case may be); and
 - (ii) provide the QFC Entity with its Nominee Particulars as a Nominee Director or Nominee Shareholder (as the case may be) and the Nominee Particulars of the Nominator.
- (B) The QFC Entity must identify the Beneficial Owner of each Nominee Director, Nominee Shareholder and Nominator and obtain the related Required Information.
- (C) A QFC Entity which has one or more Nominee Directors or Nominee Shareholders must establish, maintain and hold a Register of Nominees containing the Nominee Particulars in relation to:
 - (i) each Nominee Director;
 - (ii) each Nominee Shareholder; and
 - (iii) each Nominator.
- (D) The Nominee Particulars are as follows:
 - (i) for a natural person, the information listed at 8A.6(A)(i)(a)–(e);
 - (ii) for legal persons or legal arrangements, the information listed at 8A.6(A)(ii)(a)–(d);
 - (iii) the date on which the Nominee Director became a director of the QFC Entity;

- (iv) the date on which the Nominator of the Nominee Director became a Nominator;
 - (v) the date on which the Nominee Director ceased to be a director of the QFC Entity;
 - (vi) the date on which the Nominator of the Nominee Director ceased to be the Nominator;
 - (vii) the date on which the Nominee Shareholder became a shareholder of the QFC Entity;
 - (viii) the date on which the Nominator of the Nominee Shareholder became a Nominator;
 - (ix) the date on which the Nominee Shareholder ceased to be a shareholder of the QFC Entity;
 - (x) the date on which the Nominator of the Nominee Shareholder ceased to be a Nominator;
 - (xi) the Required Information in respect of the Beneficial Owner of each Nominee Director, Nominee Shareholder and Nominator; and
 - (xii) the date on which the Register of Nominees was last updated.
- (E) Rule 8A.4(B) applies to the Register of Nominees.

8A.8 ACCURACY OF AND OBLIGATION TO UPDATE NOMINEE PARTICULARS

- (A) A QFC Entity must ensure that the Nominee Particulars in its Register of Nominees are, to the best of its knowledge, adequate, accurate and up-to-date.
- (B) If a QFC Entity becomes aware of any change to its Nominee Particulars relating to any of its Nominee Directors or their Nominators or Nominee Shareholders or their Nominators, the QFC Entity must within 15 days of becoming aware of such change:
 - (i) obtain adequate supporting documentation from each relevant Nominee Director or Nominee Shareholder (as the case may be) evidencing the change, or otherwise verify the accuracy of the change; and
 - (ii) update its Register of Nominees to reflect the change.

8A.9 OBLIGATION TO PROVIDE INFORMATION TO THE CRO

- (A) An Applicant for incorporation or registration within the QFC must submit with its application:
 - (i) the Basic Information;
 - (ii) the Required Information relating to each of its proposed Beneficial Owners; and
 - (iii) if relevant, the Nominee Particulars relating to each of its proposed Nominee Directors and their Nominators and Nominee Shareholders and their Nominators.
- (B) A QFC Entity that did not, prior to 5 December 2021, submit a report on its Beneficial Owners to the CRO setting out the Required Information and the Nominee Particulars (if any), must do so by 31 December 2021.
- (C) Without prejudice to Rules 8A.5 and 8A.9(A) and (B), the CRO may, in the form and manner it deems appropriate, direct a QFC Entity to submit an annual report on its (i) Basic Information; (ii) Required Information relating to its Beneficial Owners; and (iii) the Nominee Particulars (if relevant) relating to its Nominee Directors and their Nominators and its Nominee Shareholders and their Nominators.

8A.10 ACCURACY OF AND OBLIGATION TO UPDATE BASIC INFORMATION AND REQUIRED INFORMATION

- (A) A QFC Entity must ensure that its Register of Basic Information, and its Register of Beneficial Owners are, to the best of its knowledge, adequate, accurate and up-to-date.
- (B) A QFC Entity must, within 15 days of any change to a Beneficial Owner, or to the Required Information of any Beneficial Owner:
 - (i) obtain from each relevant Beneficial Owner adequate supporting documentation evidencing the change, or otherwise verify the accuracy of the change; and
 - (ii) update its Register of Beneficial Owners to reflect the change.
- (C) A QFC Entity must, within 15 days of any change to its Basic Information, update its Register of Basic Information.

8A.11 CONFIDENTIALITY AND SECURITY OF BENEFICIAL OWNER INFORMATION AND NOMINEE PARTICULARS

- (A) A QFC Entity must ensure that its Register of Beneficial Owners and if relevant, its Register of Nominees, are maintained in a manner that protects the security and confidentiality of information.
- (B) A QFC Entity must not disclose its Register of Beneficial Owners or any Required Information (and if relevant, its Register of Nominees and the Nominee Particulars), to any Person except if:
 - (i) the disclosure is permitted or required by law, regulation or rules applicable in the QFC (including the AML/CFT Rules), or the State of Qatar; or
 - (ii) the relevant Beneficial Owner, Nominee Director, Nominee Shareholder or Nominator has given permission for the disclosure.

8A.12 THE POWERS OF THE QFCA TO OBTAIN DOCUMENTS AND INFORMATION

- (A) In relation to a QFC Entity's Basic Information, Beneficial Owners, Nominee Directors and their Nominators and Nominee Shareholders and their Nominators, the QFCA may by notice require a Person to produce:
 - (i) specified information or information of a specified description; or
 - (ii) specified documents or documents of a specified description,within a period and in the form and manner that the QFCA reasonably requires.
- (B) The QFCA may obtain any information from and enforce any obligations of QFC Entities by virtue of its powers under the QFC Law, the QFC Authority Regulations and the QFCA Rules, including in relation to:
 - (i) the determination of Beneficial Owners by QFC Entities and the disclosure of Required Information;
 - (ii) the determination of Nominee Directors and their Nominators and Nominee Shareholders and their Nominators by QFC Entities and the disclosure of the

Nominee Particulars; or

- (iii) any other information sought by the QFCA from QFC Entities in relation to a QFC Entity's Basic Information, Beneficial Owners, Nominee Directors and their Nominators, Nominee Shareholders and their Nominators and the Nominee Particulars.
- (C) The QFCA may enter the premises of a QFC Entity at any time during Ordinary Business Hours for the purpose of inspecting and copying information relating to:
- (i) Basic Information, and the Register of Basic information;
 - (ii) Beneficial Owners, and the Register of Beneficial Owners; and
 - (iii) Nominee Directors, Nominee Shareholders, Nominators and the Register of Nominees;
- or related documents stored in any form.

8A.13 QFCA AND CRO RIGHTS TO DISCLOSE INFORMATION

- (A) Neither the QFCA nor CRO will disclose details of Beneficial Owners, Nominee Directors, Nominee Shareholders or Nominators unless there is:
- (i) a statutory obligation or statutory basis to disclose the information; or
 - (ii) an order of the QFC Court to disclose the information,
- and the QFCA or CRO will do so on such terms as they consider appropriate.
- (B) In the case of a QFC Entity that has been wound up, dissolved, terminated, struck off or otherwise ceases to exist, the CRO shall retain details of the Basic Information, the Required Information and the Nominee Particulars submitted pursuant to this Rule 8A for a period of 10 years from its winding up, dissolution, termination, striking off or otherwise ceasing to exist.

8A.14 CONTRAVENTIONS

A contravention of this Rule 8A is taken to be a contravention of a Relevant Requirement for the purposes of the CER Rules.

8A.15 EXEMPTIONS

- (A) This rule applies to:
- (i) a QFC Entity, Nominee Director, Nominee Shareholder, or Nominator; or
 - (ii) a legal person or legal arrangement within the ownership chain of a QFC Entity, Nominee Director, Nominee Shareholder or Nominator;
- that is:
- (i) a company whose securities are traded on a regulated market that the CRO considers to be subject to adequate requirements in relation to the transparency of ownership information;
 - (ii) an entity that is regulated by a financial services regulator recognised by the CRO as applying equivalent standards of regulation as those applicable in the QFC;
 - (iii) an entity ultimately owned by a government or government agency or authority, of the State of Qatar or another jurisdiction that the CRO determines from time to time; or
 - (iv) an entity established under a law of the State of Qatar to perform governmental functions,
(individually "**Exempt Person**" and collectively "**Exempt Persons**")
- (B) The requirements of Rules 8A.2 to 8A.11 do not apply to Exempt Persons.
- (C) In respect of an Exempt Person, the QFC Entity must:
- (i) notify the CRO of the provision of Rule 8A.15(A)(iii) - (vi) that applies to it or to its Nominee Directors (or their Nominators), Nominee Shareholders (or their Nominators) or any legal person or legal arrangement within their ownership chains; and
 - (ii) provide such other information and documents as the CRO reasonably requires.
- (D) A QFC Entity is not required under Rule 8A to make any enquiry about the beneficial ownership of any Exempt Person. Notwithstanding the foregoing, a QFC Entity must record, in its Register of Beneficial Owners, the following Required Information about each Exempt Person (as the case may be):
- (i) its full legal name;

- (ii) its registered address;
- (iii) the provision of Rule 8A.15(A)(iii) to (vi) that applies to it; and
- (iv) if it:
 - (a) has its securities traded on a market referred to in Rule 8A.15(A)(iii), the name of the market;
 - (b) is regulated by a financial services regulator referred to in Rule 8A.15(A)(iv), the name of the regulator;
 - (c) is ultimately owned by a government or government agency or authority referred to in Rule 8A.15(A)(v), the name of the government, agency or authority and the jurisdiction in which it is established; or
 - (d) is established under a law of the State of Qatar referred to in Rule 8A.15(A)(vi) to perform governmental functions, the name of the law.
- (E) Rule 8A.15 does not apply to a Person who has an interest in (through shareholding or otherwise) or is otherwise directly or indirectly connected to an Exempt Person unless such Person is an Exempt Person.¹

¹ An example is if 50% of the shares of a QFC Entity is held by a company which is regulated by a financial service regulator falling within the exemption under 8A.15(A)(iv), and 50% by another company, the exemption applies only to the shareholder which is regulated by that financial services regulator, and the natural persons who are the beneficial owners of the other shareholder company must be identified, verified, registered and disclosed to the CRO in accordance with the provisions of Rule 8A.

8A.16 ISSUANCE OF GUIDANCE ON BASIC INFORMATION, BENEFICIAL OWNER INFORMATION AND NOMINEE PARTICULARS BY THE QFCA

The QFCA may, subject to these Rules, issue guidance, policy statements, forms, procedures, and any other documents or instructions that it considers necessary in relation to:

- (A) the determination of Basic Information, Required Information or Nominee Particulars and their content, form and substance;
- (B) the manner and form in which QFC Entities must maintain and submit to the CRO their Register of Basic Information, Register of Beneficial Owners or their Register of Nominees, as the case may be;
- (C) what constitutes Basic Information, Required Information or Nominee Particulars;
- (D) the definition of a Beneficial Owner, Nominee Director, Nominee Shareholder or Nominator;
- (E) the manner and form in which the Register of Basic Information, Register of Beneficial Owners or the Register of Nominees is obtained by the CRO;
- (F) the regulated markets, financial services regulators or the other jurisdictions referred to in Rule 8A.15(A); and
- (G) any other matter relating to the determination and disclosure of Basic Information, Beneficial Owners, Nominee Directors, Nominee Shareholders or Nominators, as the case may be, of QFC Entities subject to the limitations of its authority as set out in the QFC Law, the QFCA Regulations and the QFCA Rules.

8A.17 RECORD KEEPING

Members of the Governing Body of a QFC Entity jointly and severally must maintain the following information for a period of ten (10) years from the date that the QFC Entity is dissolved, wound up, terminated, struck off or otherwise ceases to exist:

- (i) the Basic Information and the Register of Basic Information relating to the QFC Entity;
- (ii) the Required Information relating to its Beneficial Owners and Register of Beneficial Owners; and

- (iii) where relevant, the Nominee Particulars relating to its Nominee Directors and their Nominators, Nominee Shareholders and their Nominators and Register of Nominees.

9. ACCOUNTING AND AUDITING

9.1 APPLICATION

This General Rule 9 applies to a Licensed Firm.

9.2 ACCOUNTING RECORDS

9.2.1 A Licensed Firm must keep accounting records with respect to all sums of money received and expended by the Licensed Firm and all sales and purchases of goods and services and other transactions by the Licensed Firm and the assets and liabilities of the Licensed Firm. Such accounting records must be sufficient to show and explain all transactions by the Licensed Firm and must be such to:

- (A) disclose with reasonable accuracy the financial position of the Licensed Firm at any time;
- (B) enable the Licensed Firm to ensure that any accounts prepared by the Licensed Firm comply with the requirements in these Rules; and
- (C) record the financial position of the Licensed Firm as at its financial year end.

9.2.2 A Licensed Firm must maintain the accounting records, financial accounts and statements and auditors reports required under the Companies Regulations, the Limited Liability Partnership Regulations, any other applicable Regulations and this chapter for at least six (6) years from the date to which they relate.

9.3 ACCOUNTING STANDARDS

A Licensed Firm must prepare and maintain all financial accounts and statements in accordance with IFRS, US GAAP, UK GAAP or such other principles or standards approved in writing by the QFCA.

9.4 FINANCIAL ACCOUNTS AND STATEMENTS

9.4.1 Within four months of the end of the financial year, a Licensed Firm must:

- (A) have its accounts and financial statements examined and reported upon by the Licensed Firm's auditor in accordance with the requirements of the Companies Regulations or Limited Liability Partnership Regulations, any other applicable Regulations and these Rules; and
- (B) file a copy of the financial statements and auditor's report with the CRO.

9.5 AUDITOR'S REPORT

9.5.1 A Licensed Firm must in addition to the requirements contained in the Companies Regulations, the Limited Liability Partnership Regulations, and other applicable Regulations ensure that its auditor:

- (A) conducts an audit of the Licensed Firm's accounts and financial statements in accordance with the requirements of the relevant standards published by the International Auditing and Assurance Standards Board (IAASB) or other standards deemed acceptable by the QFCA;
- (B) produces a report on the audited accounts and financial statements which states:
 - (i) whether, in the auditor's opinion, the accounts have been properly prepared in accordance with the requirements imposed by Regulations or these Rules;
 - (ii) in particular, whether the accounts give a true and fair view of the financial position of the Licensed Firm for the financial year and of the state of the Licensed Firm's affairs at its financial year end; and
 - (iii) any other matter or opinion relating to the requirements of Regulations or these Rules;
- (C) produce an auditors report which states whether:
 - (i) the auditor has audited the Licensed Firm's annual financial statements in accordance with the **IAASB** or other standards deemed acceptable by the QFCA;
 - (ii) the auditor has carried out any other procedures considered necessary, having regard to the **IAASB** or other standards deemed acceptable by the QFCA;

- (iii) the auditor has received all necessary information and explanations for the purposes of preparing this report to the QFCA; and
 - (iv) in the auditor's opinion, the Licensed Firm has kept proper accounting records, in compliance with the applicable Rules;
- (D) produces, if the Licensed Firm controls or holds Client Money, a report which states whether, in the opinion of the Auditor:
- (i) the Licensed Firm has maintained throughout the year systems and controls to enable it to comply with the relevant provisions of the LFAR;
 - (ii) the Licensed Firm's controls are such as to ensure that Client Money is identifiable and secure at all times;
 - (iii) any of the requirements of LFAR have not been met;
 - (iv) if applicable, Client Money that has been segregated in accordance with the LFAR;
 - (v) if applicable, the Licensed Firm was holding and controlling an appropriate amount of Client Money in accordance with LFAR as at the date on which the Licensed Firm's audited balance sheet was prepared; and
 - (vi) if applicable, there have been any material discrepancies in the reconciliation of Client Money.

10. FEES

10.1 APPLICATION

Except as set forth in General Rule 10.7, this General Rule 10 applies only to a Licensed Firm.

10.2 GENERAL PROVISIONS

10.2.1 Where a fee is payable for any Application to the QFCA, the Application may not be regarded as submitted until the fee has been paid in full.

10.2.2 Where an annual fee or supplementary fee in relation to ongoing supervision is due from a Licensed Firm under a provision of these Rules, it must be paid by the date upon which it falls due. Should a Licensed Firm fail to pay by the due date then, without limiting the right of the QFCA to take any other action, the sum due will be increased by 1% for each calendar month, or part of a calendar month, that it remains outstanding beyond the due date.

10.2.3 The QFCA may reduce, waive or refund all or part of any fee if, having considered the exceptional circumstances of a particular case, it deems it would be equitable to do so.

10.3 SUPPLEMENTARY FEES

10.3.1

- (A) The QFCA may require a Licensed Firm or Applicant to pay a supplementary fee to the QFCA in circumstances where it has or reasonably expects to incur substantial additional costs in dealing with an Application or conducting ongoing supervision.
- (B) In such cases the QFCA will notify the Applicant as soon as reasonably practicable of the amount of the supplementary fee.

10.4 APPLICATION FEES

10.4.1 An Applicant seeking to conduct Non-Regulated Activities in or from the QFC and a Licensed Firm applying for a licence to conduct additional Non-Regulated Activities must pay to the QFCA:

- (A) the Application fees specified in Schedule 4; and
- (B) any supplementary fee required by the QFCA.

10.4.2 Any Application and supplementary fees paid, whether in respect of an Applicant or Licensed Firm may be refunded.

10.5 ANNUAL FEES

10.5.1 A Licensed Firm must pay to the QFCA:

- (A) the annual fee specified in Schedule 4; and
- (B) any supplementary fee required by the QFCA.

10.5.2

- (A) The initial annual fee (pro-rated) must be paid in full to the QFCA within twenty one (21) days of the date of grant of a Licence.
- (B) Subsequent annual fees must be paid in full to the QFCA on or before 1 January of every calendar year.

10.6 FEES FOR EXTRACTS OF INFORMATION FROM THE REGISTERS OF PUBLIC INFORMATION

Persons seeking extracts of information in accordance with General Rule 3.6 maintained in the public registers by the QFCA in relation to a Licensed Firm and Persons conducting Registered Functions must, upon application pay the fee prescribed in Schedule 4.

10.7 MISCELLANEOUS FEES

The QFCA may also charge fees as specified in Schedule 4 or otherwise by notice for various services requested by Licensed or Authorised Firms not mandated by any Relevant Requirement but are otherwise consistent with the QFCA's Objectives.

10.8 REJECTION OF SERVICE REQUESTS

The QFCA may reject service requests by Licensed or Authorised Firms, including requests for the issuance of extracts of information:

- A) if the Licensed or Authorised Firm is, or likely to be, in breach of the QFC Regulations and/or Rules; or
- B) until all outstanding fees owed to the QFCA are settled by the Licensed or Authorised Firm.

11. REGISTERED FUNCTIONS

11.1 APPLICATION

This General Rule 11 applies to a Licensed Firm.

11.2 DESCRIPTION OF REGISTERED FUNCTIONS

11.2.1 Subject to General Rule 11.3, Licensed Firms must appoint:

- (A) a Senior Executive Function;
- (B) if applicable, an individual as MLRO and in compliance with the requirements of the AML/CFT Law and the AML/CFT Rules under the supervision of the Regulatory Authority; and
- (C) if applicable, an individual as the Designated Representative Function and in compliance with the requirements of the Single Family Office Regulations.

11.2.2 If more than one individual is appointed to perform the Registered Functions listed in General Rule 11.2.1 (A) and (B), the Licensed Firm must ensure that the allocation of responsibility clearly avoids duplication or omission.

11.3 SENIOR EXECUTIVE FUNCTION

11.3.1 Without prejudice to service of documents on any Key Person or Interest Holder as such terms are defined in Rule 13.3, the Senior Executive Function serves as the point of contact between the Licenced Firm and the QFCA.

11.3.2 The Senior Executive Function must be carried out by an individual who is ordinarily resident in the State of Qatar or a Support Service Provider.

11.3.3 A Single Family Office is not required to have an individual carrying out the Senior Executive Function.

11.4 ADDITIONAL REGISTERED FUNCTION

11.4.1 The MLRO Function is required for a Licensed Firm that is:

- (A) a designated non-financial business or profession (within the meaning of the AML/CFT Rules 2019); or
- (B) a designated TSP.

11.4.2 The Designated Representative Function is required for a Licensed Firm that is a Single Family Office within the meaning of the Single Family Office Regulations.

12. NOTIFICATION OF REGISTERED FUNCTIONS

12.1 APPLICATION

This General Rule 11 applies to a Licensed Firm.

12.2 NOTIFICATION OF AN INDIVIDUAL CONDUCTING REGISTERED FUNCTIONS

12.2.1 A Licensed Firm shall provide details to the QFCA of each person that shall conduct a Registered Function on behalf of the Licensed Firm, in writing on the relevant QFC form, Signed by the individual who will be performing the Registered Function and an individual authorised to sign on behalf of the Licensed Firm.

12.2.2 For the purposes of General Rule 12.2.1 a Licensed Firm includes an Applicant for Licensed Firm status.

12.2.3 The Licensed Firm shall promptly inform the QFCA in writing of any change in the status or identity of an individual conducting a Registered Function. The notice must include any other matters required by the relevant QFC Form. This does not relieve the Licensed Firm from providing any required notice under the AML/CFT Law and the AML/CFT Rules to the Regulatory Authority.

12.3 CONSIDERATION OF REGISTERED FUNCTION NOTICES

The QFCA shall advise of any objections to the Registered Function Notice or conditions to the acceptance of the Registered Function Notice no later than thirty (30) days following the date of delivery of a complete Registered Function Notice to the QFCA. If the QFCA does not send any objections or notice of conditions in writing to the Licensed Firm within thirty (30) days following such date the Registered Function Notice shall be deemed to have been accepted unconditionally by the QFCA. If the QFCA does advise the Licensed Firm of any objections or conditions of acceptance then it may call for such further information from the Licensed Firm and such other parties as it considers necessary or appropriate, and shall make a final determination within thirty (30) days of receipt of such information.

13. FITNESS AND PROPRIETY

13.1 APPLICATION

This General Rule 13 applies to a Person.

13.2 LICENSED FIRM'S ASSESSMENT OF INDIVIDUALS

13.2.1 Before registering an individual as conducting a Registered Function with the QFCA, a Licensed Firm must make reasonable enquiries as to an individual's fitness and propriety to carry out a Registered Function. When making an assessment of an individual to determine the fitness and propriety of the individual, a Licensed Firm should have regard to the individual's:

- (A) honesty, integrity and reputation;
- (B) competence and capability; and
- (C) financial soundness.

13.2.2 A Licensed Firm must not register an individual to conduct a Registered Function if it has reasonable grounds to believe that the individual is not fit and proper to carry out the Registered Function.

13.3 QFCA'S ASSESSMENT OF KEY PERSONS AND INTEREST HOLDERS

13.3.1 The QFCA may reject an Application for the approval of the appointment of a Person as a Key Person or Interest Holder of a proposed or existing Licensed Firm where the QFCA is satisfied that the Person is not fit and proper to be a Key Person or an Interest Holder.

13.3.2 The QFCA may disqualify a Key Person if the QFCA is satisfied that they are not fit and proper to be a Key Person.

13.3.3 If the QFCA intends to disqualify an existing Key Person of a Licensed Firm, then:

- (A) the QFCA:
 - i. will notify the Licensed Firm of:
 - a) its intention to disqualify that Key Person;
 - b) the right of each of the Licensed Firm and the Key Person to make written representations to the QFCA in relation to the proposed disqualification;

c) the period within which any written representations must be made; and

- ii. will require the Licensed Firm to notify the Key Person of the QFCA's intention and of the Key Person's right to make written representations to the QFCA in relation to the proposed disqualification within the period specified in the QFCA's notice,

(B) where:

- i. the Licensed Firm or the Key Person fails to make representations within the period specified in the notice; or

- ii. any representations made do not satisfy the QFCA,

the QFCA may issue a decision notice to the Licensed Firm or the Key Person disqualifying that Key Person from the date specified in the decision notice and requiring the Licensed Firm to take any action necessary to ensure that the Key Person is removed from their position within the period specified in the decision notice; and

- (C) if the Licensed Firm fails to comply with the requirements set out in the decision notice, the QFCA may take any action necessary to remove that Key Person from the relevant QFCA or CRO register without further notice to the Licensed Firm or the Key Person and update the relevant QFCA or CRO register to reflect their removal.

13.3.4 Notwithstanding anything in Rule 13.3.3, the QFCA may issue a decision notice disqualifying an existing Key Person and take any action necessary to remove them from their position with immediate effect if the QFCA concludes that any delay in doing so is prejudicial to the interests of the clients or customers of the Licensed Firm, or the interests of the QFC.

13.3.5 If the QFCA determines that an existing Interest Holder of a Licensed Firm is not fit and proper to be an Interest Holder,

(A) the QFCA:

- i. will notify the Licensed Firm of:

a) its intention to impose any of the Measures;

- b) the right of each of the Licensed Firm and the Interest Holder to make written representations to the QFCA in relation to the proposed imposition of the Measures; and
 - c) the period within which any written representations must be made;
 - ii. will require the Licensed Firm to notify the Interest Holder of the QFCA's intention and of the Interest Holder's right to make written representations to the QFCA in relation to the proposed imposition of the Measures within the period specified in the QFCA's notice;
- (B) where the Licensed Firm or the Interest Holder fails to make representations within the period specified in the notice or any representations made do not satisfy the QFCA, the QFCA may issue a decision notice:
 - i. imposing any Measures from the date set out in the decision notice and amending the relevant QFCA or CRO register to reflect the Measures imposed on the Licensed Firm's license;
 - ii. requiring the Licensed Firm to take such action as may be necessary to ensure the effective implementation of such Measures in respect of the Licensed Firm and the Interest Holder; and
 - iii. notifying the Licensed Firm of the period within which such action must be taken; and
- (C) if the Licensed Firm fails to effectively implement such Measures within the period specified in the decision notice, then the QFCA may apply such additional Measures as it deems appropriate.

13.3.6 Notwithstanding the provisions of Rule 13.3.5, the QFCA may impose any Measures with immediate effect if the QFCA concludes that any delay in doing so is prejudicial to the interests of the clients or customers of the Licensed Firm, or the interests of the QFC.

13.3.7 When determining the fitness and propriety of a proposed or existing Key Person or Interest Holder, the QFCA may have regard to whether they or any of the Beneficial Owners or Nominators of the proposed or existing Key Person or Interest Holder, as the case may be:

- (A) have been included on any sanctions list in any jurisdiction or are connected to or associated with any entity or person on any sanctions list in any jurisdiction;
- (B) have previously knowingly or recklessly provided the QFCA, the Regulatory Authority, a QFC Institution or any regulatory body in any other jurisdiction with information that is false, misleading or deceptive or have concealed information where the concealment of such information was likely to mislead or deceive the QFCA, the Regulatory Authority, the QFC Institution or any regulatory body in any other jurisdiction;
- (C) have been a Key Person or Interest Holder of:
 - i. a Licensed Firm whose license has been withdrawn by the QFCA; or
 - ii. an Authorised Firm whose authorisation has been withdrawn by the Regulatory Authority;
 - iii. a Licensed Firm that has been involuntarily de-registered by the CRO, or for which the QFCA has applied to the court under the Insolvency Regulations to have wound up; or
 - iv. a firm that has been involuntarily de-registered or whose license has been withdrawn by any regulatory body in any other jurisdiction;
- (D) have been previously disqualified from acting as a Key Person or Interest Holder in or from the QFC or in any other jurisdiction;
- (E) have been finally convicted by a court in any jurisdiction of any offence related to fraud, theft, false accounting, forgery, tax offences, dishonesty, money laundering, financing of terrorism, bribery, corruption, market manipulation, insider dealing or any other financial crimes or offences of moral turpitude or crimes and offences of similar nature, unless the record in respect of that conviction or guilt has been expunged by a competent authority;
- (F) have been disqualified by a court, regulator or a government authority in any jurisdiction, from acting as the equivalent of a Key Person or Interest Holder of a company, partnership, body corporate, unincorporated association or any other legal entity or legal arrangement;

- (G) have been disciplined by a regulator, governmental authority, self-regulatory authority or similar body in any jurisdiction;
- (H) have been involved in the management of a company, partnership, body corporate, unincorporated association or other legal entity or legal arrangement in any jurisdiction that has been involuntarily wound up, liquidated, placed in liquidation, receivership or administration, or entered into a re-scheduling of its debts with its creditors or any similar process;
- (I) have been declared bankrupt or entered an alternative voluntary arrangement to avoid bankruptcy (or the equivalent thereof) in any jurisdiction; or
- (J) have been required to resign from any company, partnership, body corporate, unincorporated association or other legal entity or legal arrangement following an investigation by a regulator, governmental authority, self-regulatory authority or similar body in any jurisdiction.

13.3.8 Notwithstanding the provisions of Rule 13.3.7, when making an assessment to determine the fitness and propriety of a proposed or existing Key Person or Interest Holder, the QFCA may have regard to any other facts, events or circumstances as it may consider appropriate in order to protect the interests of the QFC, including in respect of the Beneficial Owners or Nominators of such proposed or existing Key Person or Interest Holder.

13.3.9 Where in accordance with this Rule 13.3 the QFCA issues a decision notice disqualifying a Key Person or imposing any of the Measures on an Interest Holder, it will also provide in that decision the period of such disqualification or imposition of Measures.

13.3.9A A request may be submitted to the CRO, using the Prescribed Form and with payment of the Prescribed Fee, for an advanced assessment of a Person's acceptability as a Key Person or an Interest Holder. Following the assessment, if the Person is not considered acceptable, the CRO:

- (A) must provide a written objection, or a written notice of conditions, to the applicant, within thirty (30) days of the request being submitted to the CRO; and
- (B) may request further information from the applicant, in which case the CRO must make a final determination on the request within thirty (30) days of such information being provided to the CRO.

13.3.9B The CRO may take the following into consideration before providing a written objection to, or a written notice of conditions on, a Person's acceptability as a Key Person or Interest Holder:

- (A) the Person's fitness and propriety in accordance with this Rule 13.1
- (B) the person's compliance with the Regulations and Rules; and
- (C) the interests of the QFCA.

13.3.10 For the purposes of this Rule 13.3:

Administration Officer has the meaning given in Article 76 of the Investment Club Regulations.

Beneficial Owner has the meaning given in Part 8A of these Rules.

Beneficiary has the meaning given in the Trust Regulations.

Branch means a branch of a Non-QFC Company, a Non-QFC Limited Liability Partnership or a Non-QFC Partnership, registered in the QFC under applicable Regulations.

Companies Regulations means the Companies Regulations 2005.

Dedicator has the meaning given in the Foundation Regulations.

Designated Representative has the meaning given in the Single Family Office Regulations.

Designated Member has the meaning given in the Limited Liability Partnerships Regulations.

Enforcer has the meaning given in the Foundation Regulations.

Foundation has the meaning given in the Foundation Regulations.

Foundation Regulations means the Foundation Regulations 2016.

Founder has the meaning given in the Foundation Regulations.

Insolvency Regulations means the Insolvency Regulations 2005.

Interest Holder means:

- (A) in relation to a Licensed Firm that is a company, any Person that is a Member (as defined in the Companies Regulations). For the purposes

of this definition, a company includes an LLC, LLC(G), Protected Cell Company, Special Purpose Company, Holding Company, Single Family Office and Investment Club (as these terms are defined in the relevant QFC Regulations);

- (B) in relation to a Licensed Firm that is a Branch of a Non-QFC Company, that Non-QFC Company or any of its shareholders;
- (C) in relation to a Licensed Firm that is a Limited Liability Partnership, any Person that is a Member (as defined in the Limited Liability Partnerships Regulations);
- (D) in relation to a Licensed Firm that is a Branch of a Non-QFC Limited Liability Partnership or Non-QFC Partnership, that Non-QFC Limited Liability Partnership, Non-QFC Partnership or any of their partners;
- (E) in relation to a Licensed Firm that is a QFC Trust, the Settlor of the Trust or any Person performing an equivalent function, a Beneficiary or any other Person exercising, directly or indirectly, effective control over the Trust;
- (F) in relation to a Licensed Firm that is a Foundation, the Founder or Dedicator or any Person performing an equivalent function;
- (G) in relation to a Licensed Firm that is a Partnership, any Person that is a Partner; and
- (H) any other Person, other than a Key Person, who:
 - 1. holds or controls, or is entitled to hold or control an ownership interest in the Licensed Firm;
 - 2. holds or controls, or is entitled to hold or control, any voting rights or the equivalent thereof in the Licensed Firm;
 - 3. holds or controls, or is entitled to hold or control, the right to appoint or remove any managers or the equivalent of the Licensed Firm; or
 - 4. is entitled to receive any dividends, distributions, proceeds or the equivalent thereof from the Licensed Firm.

Investment Clubs Regulations means the QFC Investment Clubs Regulations 2016.

Key Person means:

- (A) in relation to a company, :
 - 1. a director;

2. the Senior Executive Function holder;
3. the secretary;
4. for a Single Family Office, a Designated Representative; or
5. for an Investment Club, the Administration Officer;

For the purposes of this definition, a company includes an LLC, LLC(G), Protected Cell Company, Special Purpose Company, Holding Company, Single Family Office and Investment Club (as these terms are defined in the relevant QFC Regulations);

(B) in relation to a Branch:

1. a Principal Representative
2. the Senior Executive Function;

(C) in relation to a Limited Liability Partnership, any Person that is a:

1. a Designated Member;
2. in the absence of a Designated Member, all Members (as defined in the Limited Liability partnership Regulations); or
3. the Senior Executive Function;

(D) in relation to a Trust:

1. a Trustee;
2. Protector; or
3. any other Person exercising, directly or indirectly, effective control over the Trust;

(E) in relation to a Foundation:

1. a Member (as defined in the Foundation Regulations);
2. the Registered Representative; or
3. the Enforcer;
4. in relation to a Partnership, any Partner;

Limited Liability Partnership has the meaning given in the Limited Liability Partnerships Regulations.

Limited Liability Partnerships Regulations means the Limited Liability Partnership Regulations 2005.

Measures means:

- (A) if the Licensed Firm is a company, the QFCA may impose a restriction on the Licensed Firm's licence such that:
 - 1. any transfer of ownership of any of the Interest Holder's shares in the Licensed Firm to any third party, or creation of any other rights or interest in respect thereof, may not be registered without the written consent of the CRO, along with any other conditions that the QFCA or CRO considers appropriate; and
 - 2. any registration of a transfer of ownership of any of the Interest Holder's shares in the Licensed Firm, or creation of any other rights or interest in respect thereof, made without the written consent of the QFCA is null and void;
- (B) if the Licensed Firm is not a company, the QFCA may impose a restriction on the Licensed Firm's licence such that:
 - 1. any transfer of ownership of any part of the Interest Holder's ownership interest in the Licensed Firm to any third party, or creation of any other rights or interest in respect thereof, may not be registered without the written consent of the CRO, along with any other conditions that the QFCA or CRO considers appropriate; and
 - 2. any registration of a transfer of ownership of any part of the Interest Holder's ownership interest in the Licensed Firm, or creation of any other rights or interest in respect thereof, made without the written consent of the QFCA is null and void;
- (C) the QFCA may require the Licensed Firm to withhold any dividends, distributions, proceeds or the equivalent thereof from being paid by the Licensed Firm to the Interest Holder or any person nominated by, related to or connected with the Interest Holder;
- (D) the QFCA may require the Licensed Firm to freeze or withhold any new allotments or issuance of shares, debentures or any other securities, to the Interest Holder or any person nominated by, related to or connected with the Interest Holder; and
- (E) the QFCA may take any other action against the Interest Holder and Licensed Firm, including initiating deregistration of the Licensed Firm in accordance with the applicable Regulations (or any equivalent action against Licensed Firms that are not companies).

Nominator has the meaning given in Part 8A of these Rules.

Non-QFC Company has the meaning given in the Companies Regulations.

Non-QFC Limited Liability Partnership has the meaning given in the Limited Liability Partnership Regulations.

Non-QFC Partnership has the meaning given in the Partnership Regulations.

Partner has the meaning given in the Partnership Regulations.

Partnership has the meaning given in the Partnership Regulations.

Partnership Regulations means the Partnership Regulations 2007.

Principal Representative in relation to a Branch, has the meaning given in the Companies Regulations, and in relation to a Partnership, has the meaning given them in the Partnership Regulations.

Protector has the meaning given in the Trust Regulations.

QFC Institution means the QFC Companies Registration Office and any arbitral body or other institution or body created under Article 6 or Article 9 of the QFC Law.

QFC Trust means a Trust that is registered with the QFC Authority.

Registered Representative has the meaning given in the Foundation Regulations.

Settlor has the meaning given in the Trust Regulations.

Single Family Office has the meaning given in the Single Family Office Regulations.

Single Family Office Regulations means the Single Family Office Regulations 2013.

Trust has the meaning given in the Trust Regulations.

Trustee has the meaning given in the Trust Regulations.

Trust Regulations means the Trust Regulations 2007.

14. COMPETENCE, TRAINING AND SUPERVISION

14.1 APPLICATION

This General Rule 14 applies to a Licensed Firm.

14.2 SUITABILITY AND COMPETENCE

14.2.1 A Licensed Firm should carry out appropriate investigations as to skill, experience, background and qualifications of that individual having regard to the nature and complexity of the relevant Registered Function in the context of the Non-Regulated Activities carried on by the Licensed Firm.

14.2.2 A Licensed Firm may not assess an individual as competent to perform the Money Laundering and Terrorist Financing Reporting Function unless it is satisfied that the individual has adequate knowledge of the AML/CFT Law and AML/CFT Rules.

14.2.3 In assessing the suitability of an individual to perform a Registered Function a Licensed Firm should have regard to all relevant factors including matters which may impact on that individual's fitness and propriety.

14.3 TRAINING AND SUPERVISION

A Licensed Firm must implement appropriate procedures to ensure that an individual it has assessed as competent is and remains competent taking into account the functions they perform and any changes to the products and services offered by the Licensed Firm and the types of Client with which the Licensed Firm deals.

15. PERFORMANCE OF REGISTERED FUNCTIONS

15.1 APPLICATION

This General Rule 15 applies to a Licensed Firm.

15.2 MULTIPLE APPOINTMENTS

15.2.1 An individual may carry on Registered Functions for more than one Licensed Firm provided that:

(A) each such Licensed Firm confirms to the QFCA:

(i) that it is aware of the Registered Functions which that individual carries out for any other Licensed Firm;

(ii) that it is satisfied that no conflict of interest will arise from the performance by that individual of those Registered Functions for such other Licensed Firm; and

(B) the QFCA is satisfied that no such conflicts of interest will arise.

15.2.2 An individual may carry on more than one Registered Function for a Licensed Firm provided that the Licensed Firm is satisfied that the performance of such Registered Functions does not give rise to any internal or external conflicts of interest and is appropriate having regard to the nature, scale and complexity of the business carried on by that Licensed Firm.

16. Non-Regulated Activities

16.1 APPLICATION

This General Rule 16 applies to a Licensed Firm that is conducting or intends to conduct Non-Regulated Activities in or from the QFC.

16.2 BY WAY OF BUSINESS

16.2.1 NOT USED

16.2.2 NOT USED

16.2.3 NOT USED

16.2.4 A Licensed Firm carries on an activity specified in the Non-Regulated Activities Rules by way of business only if it carries on that activity from a permanent place of business maintained by it in the QFC and engages in that activity in a manner which constitutes the carrying on of a business by it.

16.2.5 An individual does not carry on an activity specified in the Non-Regulated Activities Rules way of business if he or she carries on that activity solely as an employee or partner who is employed or appointed under a contract of service or partnership contract by a Licensed Firm.

16.2.6 A Person does not carry on an activity specified in the Non-Regulated Activities Rules by way of business if that Person is a Body Corporate and carries on the activity solely as principal with or for other Bodies Corporate:

(A) which are within the same Group; or

(B) which are or propose to become participators in a joint enterprise and the transaction is entered into for the purposes of or in connection with that enterprise.

16.2.7 A person does not carry on an activity specified in the Non-Regulated Activities Rules by way of business if such a person is an agency or

other body created by or under the QFC or employed by the QFCA or QFC Regulatory Authority to the extent that it exercises a power to perform a function relating to the governance or regulation of the QFC.

16.3 NOT USED

16.4 APPLICATION

- 16.4.1 An Applicant seeking a Licence to provide Non-Regulated Activities must apply to the QFCA to provide such services in or from the QFC by completing the applicable form as well as any other documentation required for an Applicant. An Applicant wishing to provide Non-Regulated Activities must, on the request of the QFCA, provide detailed information relating to all relevant criteria for the relevant Non-Regulated Activities as set out in Schedule 5 to these General Rules.
- 16.4.2 An Applicant seeking to provide Non-Regulated Activities must be a natural person, body corporate or a partnership. The Licensed Firm can be established as a Limited Liability Company, a Limited Liability Partnership, a Branch or as permitted by other Regulations within the QFC.
- 16.4.3 When considering an Application for registration to provide Non-Regulated Activities, the QFCA may consider an Applicant's responses to the requirements set out in Schedule 5 for a particular Non-Regulated Activity.
- 16.4.4 The QFCA shall have discretion whether to recognise any regulatory body or professional body to which an Applicant is a member (a "**Recognised Professional Body**") and any rules of conduct or code of conduct to which the Applicant may subscribe ("**Recognised Conduct Rules**"). The QFCA may also consider any matter that may harm or may have harmed the integrity or the reputation of the QFC or the QFCA.
- 16.4.5 The QFCA may from time to time, if it considers it expedient, publish lists of Recognised Professional Bodies or Recognised Conduct Rules. An Applicant's membership of a Recognised Professional Body or compliance with Recognised Conduct Rules shall not mean that the QFCA shall or must provide the Applicant with a Licence to operate in or from the QFC.
- 16.4.6 Following consideration of an Application, and any supporting information that the QFCA may request, the

QFCA may in its discretion grant a Licence to an Applicant to conduct Non-Regulated Activities in or from the QFC. The QFCA may place as a condition of the grant of a Licence to a Licensed Firm, amongst any other conditions as the QFCA may consider necessary, the continued membership and good standing of the Licensed Firm with the Recognised Professional Body to which it or its affiliate is a member and/or the continued compliance of the Licensed Firm with particular Recognised Conduct Rules or such other rules as the QFCA may consider necessary, provided that any such conditions shall be set out in the relevant Licence.

16.5 ON-GOING DUTIES

- 16.5.1 Without prejudice to the general operating requirements under the QFCA Rules, and other Rules and Regulations of the QFC applicable to a Licensed Firm, a Licensed Firm conducting Non-Regulated Activities shall follow any **Recognised Conduct Rules** applicable to it and any other requirements of the **Recognised Professional Body** to which it or its affiliate is a member, as may be required by the QFCA when granting a Licence pursuant to General Rule 16.4.6.
- 16.5.2 Licensed Firms providing Non-Regulated Activities in or from the QFC shall keep a record of all employees and, where applicable, partners operating in or from the QFC that are registered or certified by any Recognised Professional Body, and shall provide to the QFCA a list of all such employees and partners as amended from time to time.
- 16.5.3 The Licensed Firm shall ensure that all employees and partners or other offices of the Licensed Firm shall comply with any training requirements of the Recognised Professional Body, including any requirements for continuing professional education, and shall maintain any registration or authorisation by the Recognised Professional Body. The QFCA may in its own discretion waive a requirement for an individual employed by a Licensed Firm who provides Non-Regulated Activities to be registered or authorised by a Recognised Professional Body.
- 16.5.4 The Applicant or a Licensed Firm must inform the QFCA in writing as soon as it becomes aware of any change in the information provided pursuant to General Rule 16.4.1, or of any investigation of the activities or employees or officers of the Licensed Firm or any of its affiliates, whether based in Qatar or outside Qatar, by any regulatory body or

professional body to which either the Licensed Firm or any of its affiliates is responsible or is a member. The Licensed Firm will cooperate with the QFCA and provide further information to the QFCA including any revised rules of professional conduct or code of conduct to which the Licensed Firm complies.

16.6 WITHDRAWAL OF LICENCE

Without prejudice to any other Rules and Regulations of the QFC, if a Licensed Firm loses its membership of a **Recognised Professional Body** the QFCA may suspend or withdraw the Licensed Firm's Licence. If a Licensed Firm is the subject of an investigation by a **Recognised Professional Body**, the QFCA may provide any information it holds regarding the Licensed Firm to the **Recognised Professional Body** or its advisers.

SCHEDULE 1

PRINCIPLES

1. PRINCIPLES OF CONDUCT

- 1.1 Principles 3, 4 and 5 also take into account any activities of other members of a Licensed Firm's Group where those activities impact or potentially impact the Licensed Firm's compliance with these Principles.
- 1.2 References in the Principles to Clients include references to potential Clients.
- 1.3 The Principles

Principle 1 Integrity	A Licensed Firm should observe high standards of integrity in the conduct of its business.
Principle 2 Skill, Care and Diligence	A Licensed Firm should act with due skill, care and diligence in the conduct of its business.
Principle 3 Management	A Licensed Firm should ensure that its affairs are managed effectively by its senior management.
Principle 4 Systems and Controls	A Licensed Firm should have effective systems and controls including risk management systems and adequate human and technological resources.
Principle 5 Financial Prudence	A Licensed Firm should maintain adequate financial resources.
Principle 6 Market Conduct	A Licensed Firm should observe proper standards of market conduct.
Principle 7 Clients' Interests	A Licensed Firm should have due regard to its Clients' interests and treat them fairly.
Principle 8 Communications with Clients	A Licensed Firm should pay due regard to the information needs of its Clients and communicate information to them in a way which is clear, fair and not misleading.

Principle 9 Conflicts of Interest	A Licensed Firm should manage conflicts of interest fairly, both between itself and its Client, and between a Client and another Client, and must organise its affairs such that conflicts can be identified.
Principle 10 Relationship of Trust	A Licensed Firm should discharge faithfully a responsibility of trust toward a Client, including, taking reasonable care to ensure the suitability of its advice and discretionary decisions for any Client who is entitled to rely upon its judgment.
Principle 11 Client Assets	A Licensed Firm should arrange adequate protection for Clients' assets when it is responsible for them in accordance with the responsibility it has accepted.
Principle 12 Confidentiality	A Licensed Firm should ensure that information of a confidential nature received in the course of dealings with its Clients is treated in an appropriate manner.
Principle 13 Relations with the QFCA	A Licensed Firm should deal with all relevant rules and regulations in an open and cooperative manner and keep the QFCA promptly informed of anything relating to the Licensed Firm, of which the QFCA would reasonably expect notice.

SCHEDULE 2

REPORTING TABLE

1. GUIDANCE

1.1 The aim of the Reporting Table is to provide a Licensed Firm with an overview of the relevant periodic reporting requirements throughout the Rules.

1.2 The table is not a complete statement of all requirements and should not be relied upon as such.

Reference	Report	Frequency	Due date	Firm
General Rule 9.4	Financial Statements and Auditors Annual Report	Annually	Within four (4) months of the end of its financial year	Licensed Firm
General Rule 9.5.1(D)	Client Money Auditors Report	Annually	Within four (4) months of the end of its financial year	Licensed Firm that holds Client Money

SCHEDULE 3

RECORD KEEPING REQUIREMENTS

1. RECORD KEEPING TABLE

1.1. GENERAL RULES

Subject of record	When	Retention Period
Accounting records, financial accounts and statements and auditor reports	On making the record	Six (6) years from the date to which they relate
Auditors qualification and approval	On appointment of the auditor	Six (6) years following the cessation of appointment of the auditor
Basic Information, Register of Basic Information, Required Information on Beneficial Owners, Register of Beneficial Owners, Nominee Particulars on Nominee Directors, Nominee Shareholders or Nominators and Register of Nominees (if any)	From the date of winding up, dissolution, termination or striking off	Ten (10) years

1.2. INDIVIDUALS

Subject of record	When	Retention Period
Suitability and competence of individual to conduct Registered Functions	When assessing suitability and competence	Six (6) years after the individual ceases to perform the relevant Registered Function
Assessment of competency	When assessing competency	Six (6) years from the date on which the steps were taken

1.3. COB RULES

Subject of record	When	Retention Period
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Any complaint received pursuant to COB Rule 6.2	On receiving complaint	Six (6) years after date of complaint
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SCHEDULE 4

FEES

1. APPLICATION FEES

- 1.1 An Applicant seeking a Licence to conduct a Non-Regulated Activity must pay an application fee of 500 USD, or its equivalent in QAR.
- 1.2 An Applicant seeking to conduct two or more business activities must pay 50 USD, or equivalent in QAR, per additional business activity.

If one or more of the Non-Regulated Activities is that of:

(A) a designated non-financial business or profession (within the meaning of the AML/CFT Rules 2019); or

(B) a designated TSP,

the Applicant must pay an additional fee of 2000 USD, or equivalent in QAR.

- 1.3 No separate fee is payable for registration with the CRO.
- 1.4 A Non-QFC Company seeking to migrate to QFC under Rule 2A must pay an application fee of 5000 USD or its equivalent in QAR.
- 1.5 A QFC Entity seeking to migrate from the QFC under Rule 2B must pay an application fee of 5000 USD or its equivalent in QAR.

2. ANNUAL FEES

2.1 INITIAL ANNUAL FEE

- (1) A Licensed Firm must pay to the QFCA an initial annual fee for the initial period after the grant of Licensed Firm status.
- (2) The initial annual fee is calculated as the standard annual fee pro-rated over the whole months remaining between the date of the grant of the Licence and the end of the calendar year.

2.2 SUBSEQUENT ANNUAL FEES

(1) A Licensed Firm must pay to the QFCA a standard annual fee after the period described in above paragraph 2.1.

(2) The standard annual fee is:

- (i) 500 USD, or equivalent in QAR, for Holding Companies, Special Purpose Companies and Licenced Firms conducting the Activities of LLC(G)s;
- (ii) 5000 USD, or equivalent in QAR, for Licenced Firms that are licenced to conduct a single business activity;
- (iii) 50 USD, or equivalent in QAR, per additional business activity for Licenced Firms that are licenced to conduct two or more business activities.

3. PROVISION OF EXTRACTS OF INFORMATION FROM THE REGISTERS OF PUBLIC INFORMATION

In accordance with General Rule 10.6, Persons must upon Application for extracts of information from the registers of public information maintained by the QFCA, whether relating to either a Licensed Firm or a Registered Function, pay to the QFCA the prescribed fee of US\$ 50 for each specific information request.

4. MISCELLANEOUS FEES

The QFCA may also charge fees as specified in Schedule 4 or otherwise by notice for various services requested by Licensed or Authorised Firms not mandated by any Relevant Requirement but are otherwise consistent with the QFCA's Objectives. The minimum fee for any such service shall be US\$50.00 and notice will be provided in advance of actual fees to be assessed for that service.

SCHEDULE 5

LICENSING CRITERIA

When assessing an Application to conduct any of the activities listed in Schedule 5 , as the QFCA may determine on a case by case basis, the QFCA may consider any of the following criteria, as well as any other criteria which in its sole discretion it considers relevant in order to further the QFCA's Objectives in Article 5 of the QFC Law to establish, develop and promote the QFC as a leading location for international finance and business with a legal and regulatory structure that complies with international best practice.

(A) For Legal Services

- (i) a list of the professional bodies to which the Applicant is associated and/or regulated by;
- (ii) details of any codes of practice or rules to which the Applicant complies;
- (iii) a list of the laws and jurisdictions in which the Applicant and its lawyers are qualified to practice;
- (iv) a list of any investigations undertaken by any regulatory body that regulates the Applicant;
- (v) details of the types of Clients and matters that the Applicant has worked on in the past;
- (vi) the extent to which the Applicant has shown its qualification to practice particular areas of law in support of different Permitted Activities to the standard that shall apply in the QFC;
- (vii) the extent to which the Applicant has demonstrated that its core areas of practice are not readily available from provider of legal services already available in the State of Qatar or elsewhere in the region;
- (viii) details of the Applicants professional indemnity insurance cover; and
- (ix) such other criteria as the QFCA may consider relevant or necessary.

(B) For Accountancy

- (i) a list of the professional bodies to which the Applicant is associated and/or regulated by;

- (ii) details of any codes of practice or rules to which the Applicant complies;
- (iii) a list of any investigations undertaken by any regulatory body that regulates the Applicant;
- (iv) details of the types of Clients and matters that the Applicant has worked on in the past;
- (v) details of the Applicants professional indemnity insurance cover;
- (vi) qualifications to apply IFRS, UK GAAP, US GAAP, General Accepted Accounting Standards and/or AAOIFI standards; and
- (vii) such other criteria as the QFCA may consider relevant or necessary.

(C) For Tax Consultancy

- (i) a list of the professional bodies to which the Applicant is associated and/or regulated by;
- (ii) details of the codes of practice or rules to which the Applicant complies;
- (iii) a list of any investigations undertaken by any regulatory body that regulates the Applicant;
- (iv) details of the types of Clients and matters that the Applicant has worked on in the past;
- (v) details of the tax systems on which the Applicant has experience of advising;
- (vi) details of the Applicant's professional indemnity insurance cover; and
- (vii) such other criteria as the QFCA may consider relevant or necessary.

(D) For Ship Broking and Shipping Agents

- (i) a list of the professional bodies to which the Applicant is associated and/or regulated by;
- (ii) details of the codes of practice or rules to which the Applicant complies;

- (iii) a list of any investigations undertaken by any regulatory body that regulates the Applicant;
- (iv) details of the types of Clients and matters that the Applicant has worked on in the past;
- (v) details of the Applicant's professional indemnity insurance cover; and
- (vi) such other criteria as the QFCA may consider relevant or necessary.

(E) For Private Credit Rating

- (i) a list of the professional bodies to which the Applicant is associated and/or regulated by;
- (ii) details of the codes of practice or rules to which the Applicant complies;
- (iii) a list of any investigations undertaken by any regulatory body that oversees the Applicant;
- (iv) details of the types of Clients and matters that the Applicant has worked on in the past;
- (v) details of the Applicant's professional indemnity insurance cover; and
- (vi) such other criteria as the QFCA may consider relevant or necessary.

(F) For Accreditation

- (i) a list of the professional bodies to which the Applicant is associated and/or regulated by;
- (ii) details of the codes of practice or rules to which the Applicant complies;
- (iii) a list of any investigations undertaken by any regulatory body that oversees the Applicant;
- (iv) details of the types of Clients and matters that the Applicant has worked on in the past;
- (v) details of the Applicant's professional indemnity insurance cover; and

- (vi) such other criteria as the QFCA may consider relevant or necessary.

(FA) For Token Services:

- (i) details of each Token Service provided by the Applicant, including:
 - (A) details of the technology used to provide each Token Service;
 - (B) details of how the Applicant will ensure compliance with each of the requirements in Part 8; and
 - (C) if the Applicant provides more than one Token Service, details of the measures the Applicant will take to ensure that provision of those services is carried out separately to the extent required to ensure that no conflicts of interest arise from providing those services;
- (ii) details of any codes of practice or rules with which the Applicant is required to comply and those with which it chooses to comply;
- (iii) a list of any investigations into the Applicant undertaken by any regulatory or other body;
- (iv) details of the Applicant's professional indemnity insurance cover; and
- (v) such other criteria as the QFCA may consider relevant or necessary.

(G) Other Non-Regulated Activities

- (i) a list of the professional bodies to which the Applicant is associated and/or regulated by;
- (ii) a list of the codes of practice or rules to which the Applicant complies;
- (iii) a list of any investigations undertaken by any regulatory body that oversees the Applicant;
- (iv) details of the types of Clients and matters that the Applicant has worked on in the past;
- (v) details of the Applicant's professional indemnity insurance cover; and
- (vi) such other criteria as the QFCA may consider relevant or necessary.

PART 3 – CONDUCT OF BUSINESS RULES

17. APPLICATION

- 1.1 The QFCA Rules in Part 3 shall be referred to as the Conduct of Business Rules (the “COB Rules”).
- 1.2 The provisions of these COB Rules apply to a Licensed Firm.

18. GENERAL CONDUCT OF BUSINESS

Without limiting the provisions of these Rules, a Licensed Firm must conduct its business in accordance with the principles set out in the General Rules.

19. COMMUNICATION OF INFORMATION AND MARKETING MATERIALS

19.1 COMMUNICATION OF INFORMATION

- 3.3.1 When a Licensed Firm communicates information to a Client, the Licensed Firm must take reasonable steps to communicate the information in a way which is clear, fair and not misleading.
- 3.3.2 A Licensed Firm must not, in any form of communication with a Client, attempt to avoid or limit any duty or liability it may have to that Client or any other person under a Relevant Requirement.

19.2 RELIANCE ON OTHERS

- 3.2.1 A Licensed Firm will be taken to comply with any Rule in these COB Rules that requires the Licensed Firm to obtain information to the extent that the Licensed Firm can show that it was reasonable for the Licensed Firm to rely on information provided to it in writing by another Person.
- 3.2.2 In COB Rule 3.2.1, it will be reasonable for the Licensed Firm to rely on any information provided to it in writing by a Person if it reasonably believes that the Person is competent to provide the information, unless the Licensed Firm is aware, or ought reasonably to be aware, of any fact or facts that would give the Licensed Firm reasonable grounds to question the accuracy of any such information.

19.3 MARKETING MATERIAL

Before a Licensed Firm communicates any marketing material to a Client it must ensure that the material is accurate and not misleading.

19.4 CONFIDENTIALITY

A Licensed Firm must refrain from disclosing outside the Licensed Firm any confidential information acquired in the conduct of its business without proper and specific authority unless there is a professional or legal duty to disclose.

20. CONFLICTS AND MATERIAL INTERESTS

20.1 CONFLICTS AND MATERIAL INTERESTS

- 4.1.1 A Licensed Firm must establish systems and controls to identify and manage any actual and potential conflict of interest and material interest to ensure that all of its Clients are fairly treated and not prejudiced by any such interests.
- 4.1.2 Where a Licensed Firm has knowledge of a conflict or a material interest, it must manage that interest by:
 - a. establishing and maintaining effective internal restrictions on the communication of that knowledge within the Licensed Firm;
 - b. disclosing the material interest or conflict of interest to the Client in writing either generally or in relation to a specific transaction and taking reasonable steps to ensure that the Client does not object; or
 - c. relying on a written policy of independence, which requires an Employee to disregard any conflict of interest or material interest when advising a Client or exercising discretion.
- 4.1.3 If a Licensed Firm determines that it is unable to manage a conflict of interest or material interest using one of the methods described in COB Rule 4.1.2 it must decline to act for the Client.
- 4.1.4 A Licensed Firm must ensure that neither it nor its employees offers, gives solicits or accepts any inducement which is likely to conflict to a material extent with any duty that it owes to its Clients.

21. COMPLAINTS HANDLING

21.1 COMPLAINTS HANDLING

- 5.1.1 A Licensed Firm must establish and operate appropriate and effective written internal complaints handling procedures for dealing with complaints made against it by Clients in relation to Non-Regulated Activities (whether justified or not) fairly, efficiently and with due diligence and consideration.
- 5.1.2 The internal complaints handling procedures referred to in COB Rule 5.1.1 must provide for:
- (A) receiving complaints;
 - (B) responding to complaints; and
 - (C) the appropriate investigation of complaints;
- 5.1.3 A Licensed Firm must take reasonable steps to ensure that all relevant Employees are aware of the Licensed Firm's internal complaint handling procedures and must endeavour to ensure that they act in accordance with them.
- 5.1.4 A Licensed Firm's systems and controls must include appropriate management controls to ensure that:
- (A) it handles complaints fairly, consistently and promptly; and
 - (B) it identifies and remedies any recurring or systemic problems, as well as any specific problem identified by a complaint.

21.2 RECORD KEEPING

A Licensed Firm must make and retain records of complaints (where the complaint is in writing) and, even where the complaint is not in writing, it must make and retain records of the handling of the complaint for at least six (6) years from the date of its receipt of the complaint.

PART 4 – LICENSED FIRM ASSETS RULES

1. APPLICATION

The QFCA Rules in Part 4 shall be referred to as the Licensed Firm Assets Rules (the “**LFAR**”) and shall apply to a Licensed Firm.

2. OBJECTIVES

2.1 GENERAL OBJECTIVES

The QFCA considers that the proper safeguarding of money and other assets belonging to Clients is essential to the pursuit of its Objectives.

2.2 REQUIREMENTS

- 2.2.1 This LFAR sets out the requirements applicable to Licensed Firms in relation to the proper safeguarding of money and other assets belonging to Clients.
- 2.2.2 Failure by a Licensed Firm to comply adequately with this Rulebook is likely to impact on the QFCA's assessment of that Licensed Firm's fitness and propriety pursuant to General Rule 2.

3. GENERAL PROVISIONS

3.1 PROVISION OF INFORMATION

When a Rule in this LFAR requires information to be sent to a Client, a Licensed Firm must provide that information directly to the Client and not to another Person, unless the Licensed Firm has a written instruction from the Client requiring or permitting the Licensed Firm to provide the relevant information to that other Person, so long as the recipient is not connected with the Licensed Firm.

4. CLIENT MONEY

4.1 APPLICATION

- 4.1.1 This chapter applies to every Licensed Firm that holds Client Money.
- 4.1.2 For the purposes of Rule 4.1.1 of the LFAR, Client Money is held by a Licensed Firm if it is:
 - (A) directly held by the Licensed Firm;
 - (B) held in an account in the name of the Licensed Firm; or

- (C) held by a Person, or in an account in the name of a Person, controlled by the Licensed Firm.

4.2 DEFINITION OF CLIENT MONEY

- 4.2.1 All money held or received by a Licensed Firm from or on behalf of a Client in the course of, or in connection with, the carrying on of any Non-Regulated Activity in or from the QFC is Client Money, except where such money that is immediately due and payable by the Client to the Licensed Firm for its own account.
- 4.2.2 For the purposes of Rule 4.2.1 of the LFAR, money which is immediately due and payable to a Licensed Firm for its own account includes money which is paid to the Licensed Firm (including by being deducted from Client Money held by the Licensed Firm) in settlement of fees, including fees for services provided to a Client, expenses of the Licensed Firm incurred and payable by the Licensed Firm and other charges that are due and payable to the Licensed Firm.
- 4.2.3 For the purposes of this chapter, the expression 'money' includes any right, instruction or direction to pay or be paid money or money's worth.

4.3 CREATION OF TRUST OVER CLIENT MONEY

- 4.3.1 All Client Money held by a Licensed Firm shall be subject to a trust (and the Licensed Firm shall be the trustee of that trust). Any Client Money held pursuant to that trust shall be held on the following terms:
 - (A) for the purposes of and on the terms of the Client Money Protection Rules and the Client Money Distribution Rules;
 - (B) subject to Rule 4.3.1(C) of the LFAR, for the Clients for whom that money is held according to their respective interests in it;
 - (C) on the failure of the Licensed Firm, for the payment of the costs properly attributable to the distribution of the Client Money, in accordance with Rule 4.3.1(B) of the LFAR; and
 - (D) after all valid claims and costs under Rule 4.3.1(B) and Rule 4.3.1(C) of the LFAR have been met, for the Licensed Firm itself.

4.4 PAYMENT OF CLIENT MONEY INTO CLIENT BANK ACCOUNTS

4.4.1 A Client Bank Account is an account:

- (A) that is held with a Eligible Bank;
- (B) that includes the words "Client Bank Account" in its title; and
- (C) in respect of which, the Licensed Firm has:
 - (i) notified the relevant Eligible Bank in writing that all money standing to the credit of the account is held by the Licensed Firm as trustee and that the Eligible Bank is not entitled to combine the account with any other account or to exercise any right of set-off or counterclaim against money in that account in respect of any sum owed to it on any other account of the Licensed Firm; and
 - (ii) requested the Eligible Bank to provide it with a written acknowledgement of the matters set out in Rule 4.4.1(C)(i) of the LFAR.

4.4.2 Where a Licensed Firm holds Client Money it must ensure, except where otherwise provided in Rule 4.4 or Rule 4.5 of the LFAR, that the Client Money is paid into one or more Client Bank Accounts as soon as possible and in any event within one (1) Business Day of receipt.

4.4.3 If the Client Money is received by a Licensed Firm in the form of an automated transfer, it must take reasonable steps to ensure that:

- (A) the money is received directly into a Client Bank Account; and
- (B) if money is received directly into the Licensed Firm's own account, the money is transferred into a Client Bank Account within one (1) Business Day of receipt.

4.4.4 If a Licensed Firm receives a mixed remittance (part Client Money and part other money), it must:

- (A) pay the full sum into a Client Bank Account in accordance with Rule 4.4.2 of the LFAR; and
- (B) transfer out that part of the payment which is not Client Money within one (1) Business Day of the day on which it would normally expect the remittance to be cleared (or, if such day is

not a Business Day in the jurisdiction in which the account is held, on the next Business Day in that jurisdiction).

4.4.5 A Licensed Firm:

- (A) may only pay, or permit to be paid, Client Money into a Client Bank Account where it has undertaken a prior assessment of the suitability of the relevant Eligible Bank and concluded on reasonable grounds that the Eligible Bank is suitable to hold that Client Money in a Client Bank Account; and
- (B) must have systems and controls in place to ensure that the Eligible Bank remains suitable.

4.4.6 The requirement for a Licensed Firm to pay Client Money into a Client Bank Account does not apply with respect to Client Money:

- (A) received in the form of cheque, or other payable order, until the Licensed Firm is in receipt of the proceeds of that cheque; or
- (B) temporarily held by a Licensed Firm before forwarding to a Person nominated by the Client.

4.4.7 A Licensed Firm must have procedures for identifying Client Money received by it and for promptly recording the receipt of the money either in the books of account or a register for later posting to the Client cash book and ledger accounts. The procedures must cover Client Money received by the Licensed Firm through the mail, electronically or via agents of the Licensed Firm or through any other means.

4.5 SEGREGATION OF CLIENT MONEY FROM THE LICENSED FIRM'S OWN MONEY

4.5.1 Subject to Rule 4.5.2 of the LFAR, a Licensed Firm must not deposit its own money into a Client Bank Account.

4.5.2 A Licensed Firm must not hold money other than Client Money in a Client Bank Account unless it is:

- (A) a minimum sum required to open the account or to keep it open;
- (B) money that is temporarily in the account in accordance with Rule 4.4.4 of the LFAR (mixed remittance); or
- (C) interest credited to the account which exceeds the amount payable to Clients as interest and has not yet been withdrawn

by the Licensed Firm, provided that the money is removed within one calendar month.

- 4.5.3 A Licensed Firm must maintain systems and controls for identifying money that is not permitted to be in a Client Bank Account and for transferring any such money which is in a Client Bank Account out of that account without delay.

4.6 PAYMENT OF CLIENT MONEY FROM CLIENT BANK ACCOUNTS

- 4.6.1 A Licensed Firm must have procedures for ensuring all withdrawals from a Client Bank Account are authorised.

- 4.6.2 Subject to Rule 4.6.3 of the LFAR, Client Money held by a Licensed Firm must remain in a Client Bank Account, until it is:

- (A) due and payable to the Licensed Firm;
- (B) paid to the Client on whose behalf the Client Money is held;
- (C) paid in accordance with an instruction from the Client on whose behalf the Client Money is held;
- (D) required to meet the payment obligations of the Client on whose behalf the Client Money is held; or
- (E) paid out in circumstances that are otherwise authorised by the QFCA

where upon it shall cease to be Client Money and the Licensed Firm's obligations as trustee in respect of such money shall cease.

- 4.6.3 Money paid out by way of cheque or other payable order under Rule 4.6.2 of the LFAR must remain in a Client Bank Account until the cheque or payable order is presented to the Client's bank and cleared by the paying agent.

4.7 CLIENT NOTIFICATIONS

Before, or as soon as reasonably practicable after, a Licensed Firm receives Client Money, it must notify the Client on whose behalf the Client Money is held in writing of the terms on which such Client Money is held.

4.8 CLIENT REPORTING

- 4.8.1 A Licensed Firm must send a statement to the Client quarterly or at such other intervals as are agreed in writing with the Client.

4.8.2 The statement must include:

- (A) The Client's total Client Money balances held by the Licensed Firm reported in the currency in which the Client Money is held, or the relevant exchange rate if not reported in the currency in which the money is held;
- (B) the amount, date, value and description of each credit and debit paid into and out of the account since the previous statement; and
- (C) any interest earned and charged on the Client Money since the previous statement.

4.8.3 The statement sent to the Client must be prepared within one (1) calendar month of the statement date.

4.9 RECONCILIATION

4.9.1 A Licensed Firm must maintain a system to ensure that accurate reconciliations of the Client Bank Accounts in which Client Money is held are carried out, as frequently as necessary to ensure the accuracy of its records, and no less than once as at the close of the last Business Day of each calendar month.

4.9.2 A Licensed Firm must:

- (A) reconcile the individual credit ledger balances, Client Bank Account balances and the balances on the relevant Eligible Bank statement;
- (B) check that the balance in the Client Bank Accounts as at the close of business on the previous day was at least equal to the aggregate balance of individual credit ledger balances as at the close of business on the previous day; and
- (C) ensure that all shortfalls, excess balances and unresolved differences, other than differences arising solely as a result of timing differences between the accounting systems of the Eligible Bank and the Licensed Firm, are investigated and, where applicable, corrective action taken as soon as is practicable.

4.9.3 A Licensed Firm must perform the reconciliations required pursuant to Rule 4.9.2 of the LFAR within ten (10) Business Days of the date to which the reconciliation relates.

4.9.4 The Licensed Firm must notify the QFCA immediately where there has been a material discrepancy with the reconciliation which has

not been rectified within one (1) Business Day following the day on which that discrepancy was identified.

4.10 AUDITOR'S REPORTS

4.10.1 A Licensed Firm that holds Client Money must arrange for its auditors to prepare a report and submit it to the QFCA in accordance with General Rule 9.5.1(D).

4.11 RECORD KEEPING

4.11.1 A Licensed Firm must maintain records:

- (A) which enable the Licensed Firm to demonstrate to its auditors and the QFCA its compliance with the requirements set out in this chapter; and
- (B) which enable the Licensed Firm to demonstrate and explain all entries of money held in accordance with this chapter.

4.11.2 A Licensed Firm must maintain proper books and accounts based on the double-entry booking principle. They must be legible, up to date and contain narratives with the entries which identify and provide adequate information about each transaction to which this rulebook applies. Entries must be made in chronological order and the current balance must be shown on each of the Licensed Firm's ledgers.

4.11.3 A Licensed Firm must maintain a master list of all of its Client Bank Accounts.

4.11.4 The details of a Client Bank Account must be documented and maintained in the master list for at least six (6) years following the closure of the relevant Client Bank Account.

4.11.5 A Licensed Firm must maintain adequate records of all cheques and payment orders received in accordance with Rule 4.4.6 (A) of the LFAR.

4.11.6 Except as otherwise stated, all records maintained by a Licensed Firm pursuant to this chapter must be kept for at least six (6) years.

5. CLIENT MONEY DISTRIBUTION RULES

5.1 APPLICATION

This chapter applies to every Licensed Firm that holds Client Money.

5.2 FIRM-RELATED DISTRIBUTION EVENT

- 5.2.1 Following the occurrence of a Firm-Related Distribution Event in relation to a Licensed Firm, that Licensed Firm must distribute Client Money in the following order of priorities (subject to the deduction of any fees payable to the insolvency practitioner or other similar official that has responsibility for distributing such Client Money):
- (A) first, all Client Money held in any Client Bank Account, shall be pooled and distributed among the Licensed Firm's Clients on a proportionate basis in accordance with the value of their respective valid claims against the Licensed Firm in respect of money owed to them by the Licensed Firm that is Client Money;
 - (B) secondly, upon satisfaction of all claims in (A) above;
 - (C) if a liquidator, receiver, administrator, or trustee in bankruptcy has been appointed over the Licensed Firm, the surplus shall be distributed in accordance with applicable insolvency or bankruptcy laws of the QFC; or
 - (D) in all other cases, the surplus shall be distributed in accordance with the direction of the QFCA.
- 5.2.2 Following the occurrence of a Firm-Related Distribution Event in relation to a Local Licensed Firm, if the amount of Client Money held in the Licensed Firm's Client Bank Accounts is insufficient to satisfy the valid claims against the Licensed Firm of any Clients in respect of money owed to them by the Licensed Firm that is Client Money, all other assets beneficially owned by the Licensed Firm shall be used to satisfy any outstanding amounts remaining payable to such Clients in respect of those claims that have not been satisfied from the application of Rule 5.2.1(A) of the LFAR in priority to all of the Licensed Firm's other creditors other than those that have a prior ranking security interest in such assets.
- 5.2.3 To the extent that the above requirements are inconsistent with the Insolvency Regulations, the above requirements will prevail.

5.3 THIRD PARTY-RELATED DISTRIBUTION EVENT

- 5.3.1 When Client Money is held by a Licensed Firm in a Client Bank Account with an Eligible Bank, the Licensed Firm continues to owe fiduciary duties to the Client by virtue of the trust constituted under Rule 4.3 of the LFAR. However, a Licensed Firm will not be held responsible for a shortfall in Client Money arising as a result of or in connection with a Third Party-Related Distribution Event, provided that the Licensed Firm has complied with its fiduciary duties, including its duty to exercise proper care and skill in:

- (A) the selection of the Eligible Bank; and
 - (B) its subsequent monitoring of that Eligible Bank.
- 5.3.2 Subject to compliance with these fiduciary duties, the Licensed Firm is therefore not required to make good any such shortfall (although it may, of course, choose to do so in the interests of its relationship with the relevant Clients).
- 5.3.3 Following the occurrence of a Third Party-Related Distribution Event in relation to the Eligible Bank:
 - (A) unless the Licensed Firm chooses to make good shortfalls in the Client Money balances held (or which should have been held) in the Client Bank Accounts held by a Licensed Firm with the relevant Eligible Bank, such shortfalls shall be borne by Clients who have valid claims against the Licensed Firm in respect of money owed to them by the Licensed Firm that is Client Money, in proportion to the respective value of their claims;
 - (B) the Licensed Firm must, as soon as is practicable, make and retain a record of each such Client's share of the shortfall and must promptly notify the amount of the shortfall to the affected Clients (except where the Licensed Firm chooses to make good the shortfall); and
 - (C) Client Money received after the Third Party-Related Distribution Event:
 - (i) must not be transferred to the Eligible Bank which has suffered the Third Party-Related Distribution Event unless this is on the specific instructions of the Client (given after the occurrence of the Third Party-Related Distribution Event) in order to settle an obligation of that Client to that Eligible Bank; and
 - (ii) must, subject to (i), be placed in a separate Client Bank Account that has been opened with a different Eligible Bank after the Third Party-Related Distribution Event has occurred.

PART 5 – COMPLIANCE AND ENFORCEMENT RULES

1. APPLICATION

- 1.1 These QFCA Rules shall be referred to as the Compliance and Enforcement Rules (the “CER Rules”) and shall apply to any Licensed Firm or Authorised Firm or Person.
- 1.2 Any term not defined in these Rules shall have the meaning set out in the QFC Financial Services Regulations, except that references to QFC Regulatory Authority, as relevant, shall refer instead to the QFCA.
- 1.3 For the purposes of the CER Rules, “Customer” has the meaning set out in QFC Regulatory Authority rules.

2. ADMINISTRATION

For the avoidance of doubt, the responsibilities of the Employment Standards Office set forth in the QFC Employment Regulations to ensure compliance with and enforce the requirements of such Regulations shall be exercised by the Employment Standards Office, while the responsibilities of the Immigration Office set forth in the QFC Immigration Regulations to ensure compliance with and enforce the requirements of such Regulations shall be exercised by the QFCA.

3. INVESTIGATIONS

3.1 POWERS TO OBTAIN DOCUMENTS AND INFORMATION

- 3.1.1 The QFCA may require the production by any Person in the QFC or (subject to CER Rule 3.1.2) elsewhere of:
 - (A) specified information or information of a specified description; and/or
 - (B) specified documents or documents of a specified description,
 - (C) within such timetable and in such form and manner as the QFCA may reasonably require.
- 3.1.2 The court, tribunal or other judicial body established under the QFC Law and empowered to hear matters arising under these Rules (hereinafter referred to as the “**Relevant Review Body**”) may on Application by the QFCA order that the QFCA may make a

requirement under CER Rule 3.1.1 in respect of a Person outside the QFC (whether in the State of Qatar or otherwise).

- 3.1.3 The QFCA may enter the premises of Licensed or Authorised Firm in the QFC at any time for the purpose of inspecting and copying information or documents stored in any form in respect of matters within its jurisdiction on such premises.
- 3.1.4 The Licensed or Authorised Firm, or Person to which CER Rules 3.1.1 or 3.1.3 relate must give the QFCA all such assistance as the QFCA may reasonably require.

The obligation in CER Rule 3.1.4 is enforceable on Application by the QFCA to the Relevant Review Body.

3.2 REPORTS

- 3.2.1 Subject to CER Rule 3.1, the QFCA may, by notice in writing given to a Licensed or Authorised Firm require the production to the QFCA of a report by a person nominated by the QFCA pursuant to CER Rule 3.2.3 ("**Nominated Person**") on any matter relating to the conduct of a Permitted Activity.
- 3.2.2 The QFCA may require any such report to be in such form as may be specified in the notice issued under CER Rule 3.2.1.
- 3.2.3 The Nominated Person appointed to make any report required by CER Rule 3.1.1 must be nominated or approved by the QFCA.
- 3.2.4 Where a report under CER Rule 3.2 has been required, the Licensed or Authorised Firm to whom a notice has been given must give the Nominated Person all such assistance as that Nominated Person may reasonably require.
- 3.2.5 The obligation in CER Rule 3.2.1 is enforceable on Application by the QFCA to Relevant Review Body.
- 3.2.6 The costs of providing a report under CER Rule 3.2 shall be borne by the Licensed or Authorised Firm to whom a notice has been given under CER Rule 3.2.1

3.3 APPOINTMENT OF INVESTIGATORS

- 3.3.1 If it appears to the QFCA that there is a good reason for doing so, the QFCA may appoint one or more competent Investigators, who may be or include employees of the QFCA, to conduct investigations into a suspected contravention of a Relevant Requirement as defined in CER Rule 6.1 and to report to the QFCA accordingly.

- 3.3.2 The QFCA must give written notice of the appointment of an Investigator to all Persons subject to investigation, unless it believes that giving such notice would risk frustrating the investigation in a material way. Any such notice must specify the purpose of and reason for the investigation.
- 3.3.3 A Licensed or Authorised Firm under investigation is entitled to legal representation during the course of an investigation under CER Rule 3.3.
- 3.3.4 The QFCA shall pay the costs and expenses of an investigation save that, where, as a result of an investigation under CER Rule 3.3, the Licensed or Authorised Firm under investigation is found to have contravened a Relevant Requirement, the QFCA or, where appropriate, the Relevant Review Body may order that the Licensed or Authorised Firm must pay the QFCA in respect of the whole or any part of the costs and expenses of the investigation.

3.4 INVESTIGATIONS – DUTIES AND POWERS

- 3.4.1 An Investigator appointed under CER Rule 3.3 must, unless the investigation is discontinued for any reason, make a written report of his investigation to the QFCA.
- 3.4.2 In support of an investigation, the QFCA may require, by written notice, any Licensed or Authorised Firm, including any
 - (A) current or previous officer, including director, shareholder, Senior Executive Function, secretary, MLRO and DMLRO of the Licensed or Authorised Firm;
 - (B) current or previous employee of the Licensed or Authorised Firm;
 - (C) current or previous agent of the Licensed or Authorised Firm;
 - (D) current or previous signatory on the computer card of the Licensed or Authorised Firm; and
 - (E) any other person who is connected or otherwise related by any means to the Licensed or Authorised Firm ("**Relevant Person**"):
 - (i) to attend before the Investigator at a specified time and place and to answer questions;
 - (ii) to produce at a specified time and place any specified document or documents of a specified description; and/or

(iii) to provide such information or assistance as the Investigator may require and the Relevant Person is able to give.

3.4.3 The QFCA may require the Relevant Person to give such information or produce such documents within such reasonable time period and/or at such a specified place as detailed in the written notice given under CER Rule 3.4.2.

3.4.4 A Relevant Person providing information or documentation to the QFCA whether pursuant to a Relevant Requirement or voluntarily, will not be subject to any liability, nor any breach of duty by virtue of having done so provided that the Person has acted in good faith and in the reasonable belief that the information or documentation is relevant to any of the functions of the QFCA under the Relevant Requirement.

3.4.5 Where the QFCA is conducting an investigation under CER Rule 3.3 or 3.4 and has reasonable grounds for believing that an individual conducting a Registered Function may have engaged in conduct that would form grounds for the withdrawal or variation of that individual's status, it may, upon written notice to both the individual and the relevant Licensed or Authorised Firm, suspend or vary that individual's approved status for the duration of the investigation and/or and related proceedings insofar as such investigation or proceedings relate to that individual.

3.4.6 Where the QFCA is conducting an investigation into a Licensed or Authorised Firm under CER Rule 3.3 it may apply to the Relevant Review Body for an order that all or any of the assets, books and records of the Licensed or Authorised Firm be preserved and not moved or otherwise dealt with.

3.5 ADMISSIBILITY

A statement made, information given or documents produced in compliance with a request under this Part shall be admissible in evidence in any proceedings before the Relevant Review Body, provided it also complies with any requirements governing the admissibility of evidence in the relevant proceedings.

3.6 THE ROLE OF THE RELEVANT REVIEW BODY IN INVESTIGATIONS

3.6.1 The QFCA may apply to the Relevant Review Body to assist in the enforcement of the QFCA's powers in this CER Rule 3.

- 3.6.2 The Relevant Review Body shall provide such assistance as it considers appropriate in the circumstances and in accordance with its powers, including the imposition of financial penalties for contraventions in accordance with relevant QFC Regulations and these CER Rules and the issue of search orders and orders for the seizure of documents and/or information.

3.7 SELF INCRIMINATION

- 3.7.1 Subject to CER Rule 3.8, it is not a reasonable excuse for a Licensed or Authorised Firm to refuse or fail to:

- (iv) permit the inspection or copying of any information or document;
- (v) produce, or disclose, or procure the production or disclosure of, any information or document; or
- (vi) answer questions;

pursuant to any requirement under these CER Rules, on the grounds that any such information or document or answer, as the case may be, might tend to incriminate the Relevant Person or make such Person liable to a financial penalty.

3.8 PROTECTED ITEMS

- 3.8.1 A Relevant Person may not be required under these CER Rules to produce disclose or permit the inspection of Protected Items.
- 3.8.2 A communication or item is not a Protected Item if it is held with the intention of furthering a criminal purpose.

3.9 OBSTRUCTION OF THE QFCA

A Relevant Person shall not engage in conduct, including:

- (A) the destruction of documents;
- (B) the failure to give or produce information or documents specified by the QFCA;
- (C) the failure to attend before the QFCA at a specified time and place to answer questions;
- (D) the giving of information that is false or misleading; and

(E) the failure to give any assistance in relation to an investigation which the Relevant Person is able to give,

that is intended to obstruct the QFCA in the exercise of its powers under the Relevant Requirement. The intention to obstruct need not be the sole purpose, it is sufficient if the dominant purpose was the intention to obstruct.

4. DISCIPLINARY POWERS

4.1 PUBLIC CENSURE

If the QFCA considers that a Licensed or Authorised Firm, or Person has contravened a Relevant Requirement the QFCA may publish a statement to that effect.

4.2 FINANCIAL PENALTIES

4.2.1 If the QFCA considers that a Licensed or Authorised Firm, or Person has contravened a Relevant Requirement, it may impose on it a financial penalty, in respect of the contravention, of such amount as it considers appropriate.

4.2.2 The QFCA may not in respect of any contravention impose a financial penalty under this CER Rule 4.2 in respect of any matter for which the Licensed or Authorised Firm, or Person has already been sanctioned by the Relevant Review Body.

4.2.3 A penalty under these CER Rules is payable to the QFCA unless the QFCA determines otherwise.

4.2.4 Any penalty that is not paid within the period stipulated by the QFCA may on application to the Relevant Review Body be recovered by the QFCA as a debt.

4.2.5 The QFCA may publish a statement describing the contravention to which this CER Rule relates and the amount of any financial penalty imposed.

4.3 APPOINTMENT OF MANAGERS

4.3.1 The QFCA may by written notice require a Licensed or Authorised Firm to appoint one or more individuals to act as managers of the business of the Licensed or Authorised Firm on such terms as the QFCA may specify in any such notice.

- 4.3.2 The individual or individuals appointed to act as managers of the business of the Person under CER Rule 4.3.1 must be nominated or approved by the QFCA.

4.4 UNDERTAKINGS

- 4.4.1 The QFCA may by written notice require a Licensed or Authorised Firm, or Person to give the QFCA a legally enforceable undertaking in such terms as the QFCA shall specify in any such notice. Such terms may include an undertaking by the Person to refrain from engaging in any particular type of conduct.
- 4.4.2 The Licensed or Authorised Firm, or Person may withdraw or vary the undertaking at any time, but only with the consent of the QFCA.
- 4.4.3 If the QFCA is satisfied that the Licensed or Authorised Firm, or Person who gave the undertaking has been in breach of any of its terms, it may apply to the Relevant Review Body for an order directing the Licensed or Authorised Firm, or Person to comply with the relevant terms of the undertaking or any other order that the Relevant Review Body considers appropriate.

4.5 PROHIBITIONS AND RESTRICTIONS

The QFCA may by written notice:

- 4.5.1 prohibit a Licensed or Authorised Firm, or Person from:
- (A) entering into certain specified transactions or types of transaction;
 - (B) soliciting business from certain specified Persons or types of Person; or
 - (C) carrying on business in a specified manner or other than in a specified manner;
- 4.5.2 require a Licensed or Authorised Firm, or Person to carry on business or conduct itself in a specified manner; or
- 4.5.3 prohibit a Licensed or Authorised Firm or Person from performing a specified function, any function falling within a specified description or any function.

4.6 INJUNCTIONS

- 4.6.1 If the QFCA is satisfied that a Licensed or Authorised Firm, or Person:

(A) will contravene a Relevant Requirement; or

(B) has contravened a Relevant Requirement and there is a reasonable likelihood that the contravention will continue or be repeated,

the QFCA may apply to the Relevant Review Body for an order restraining such contravention.

4.6.2 If the QFCA is satisfied that:

(A) a Licensed or Authorised Firm, or Person has contravened a Relevant Requirement; and

(B) there are steps which could be taken to remedy the contravention,

the QFCA may apply to the Relevant Review Body for an order requiring the Licensed or Authorised Firm, or Person to take such steps as it may direct to remedy the contravention.

4.6.3 the QFCA is satisfied that a Licensed or Authorised Firm, or Person may have:

(A) contravened a Relevant Requirement; or

(B) been knowingly concerned in the contravention of a Relevant Requirement,

the QFCA may apply to the Relevant Review Body for an order restraining the Licensed or Authorised Firm, or Person from disposing of, or otherwise dealing with, any of its assets.

4.7 RESTITUTION ORDERS

If the QFCA is satisfied that a Licensed or Authorised Firm, or Person has contravened a Relevant Requirement, or been knowingly concerned in the contravention of a Relevant Requirement, and:

(A) profits have accrued to the Licensed or Authorised Firm, or Person as a result of the contravention; or

(B) one or more Persons have suffered loss or been otherwise adversely affected as a result of the contravention,

then the QFCA may apply to the Relevant Review Body for an order requiring the Person concerned to pay to the appropriate Person or distribute among the appropriate Persons such amount as appears to the

QFCA to be just, having regard to the profits appearing to the QFCA to have accrued and/or to the extent of the loss or other adverse effect suffered.

4.8 CIVIL PROCEEDINGS

The QFCA may make Rules giving Persons generally or particular categories of Persons who have suffered loss or damage as a result of the contravention by a Licensed or Authorised Firm, or Person of a Relevant Requirement the right to apply to the Relevant Review Body for a restitution order or any other awards permissible under the Relevant Requirement against the Licensed or Authorised Firm, or Person.

4.9 APPEALS

If the QFCA exercises any of its disciplinary powers under this CER Rule 4, the Licensed or Authorised Firm, or Person concerned may, within sixty (60) days of receipt of a Decision Notice in accordance with CER Rule 5.2, refer the matter to the Relevant Review Body

4.10 POWER OF QFCA TO INTERVENE IN ANY PROCEEDINGS

4.10.1 The QFCA may intervene as a party in any proceedings before the Relevant Review Body where it considers such intervention appropriate.

4.10.2 Where the QFCA so intervenes it shall, subject to any other law, have all the rights, duties and liabilities of such a party in such proceedings.

4.11 EFFECT OF PROVISIONS

For the avoidance of doubt, nothing in any Rule in this Part limits the generality of any other Rule in this Part, or the generality of any provision in the QFC Law or any Regulations or Rules issued thereunder.

4.12 PROCEDURAL IRREGULARITIES

4.12.1 A procedure under these CER Rules or any Related Regulations is not invalidated because of any procedural irregularity unless the Relevant Review Body declares the procedure to be invalid.

4.12.2 For the purposes of these CER Rules:

- (A) procedure includes the making of a decision, the conduct of a hearing, the giving of a notice, and any proceedings (legal or otherwise); and

- (B) procedural irregularity includes a reference to a defect, irregularity or deficiency of notice or time.

5. ENFORCEMENT PROCEDURE

5.1 RIGHT TO MAKE WRITTEN REPRESENTATIONS

- 5.1.1 Subject to CER Rule 5.1.3, if the QFCA proposes to exercise its disciplinary powers under these CER Rules in relation to a Licensed or Authorised Firm, or Person, it must first give the Licensed or Authorised Firm, or Person:

- (A) a written notice of proposed action specifying the action which the QFCA proposes to take; and

- (B) an opportunity to make written representations to the QFCA in relation to the proposed action to be taken.

- 5.1.2 The QFCA may specify in any notice of proposed action the manner and time within which any such written representations must be made.

- 5.1.3 The requirement under CER Rule 5.1.1 shall not apply where the QFCA concludes that any delay likely to arise as a result of the requirement under CER Rule 5.1.1 might be prejudicial to the interests of the Clients or Customers, or the QFC.

- 5.1.4 The QFCA must use reasonable measures to deliver to the Licensed or Authorised Firm, or Person the notice of proposed action. Reasonable measures may include, but are not limited to any of the following:

- (A) personal service, if the addressee is a natural person;
 - (B) leaving such notice at, or sending it by hand to, the registered address of the Licensed or Authorised Firm, as available in the CRO's or QFCA's records;
 - (C) leaving such notice at, or sending it by hand to, the principal place of business, if it is a Branch, as available in the CRO's or QFCA's records;
 - (D) leaving such notice at, or sending it by hand to, the home or any other addresses available in the CRO's or QFCA's records, if the addressee is a natural person;
 - (E) sending a copy of such notice electronically to the email address or fax number of the addressee, as recorded in CRO's or QFCA's records; or
 - (F) sending such notice by registered post or courier service, to any one or more addresses available in the CRO's or QFCA's records.

- 5.1.5 Service of a notice of proposed action is deemed to have occurred on the third Business Day after the day on which the QFCA takes any of the measures set out in CER Rules 5.1.4.

5.2 DECISION NOTICES

- 5.2.1 Subject to CER Rules 5.1 and 5.2, if the QFCA decides to exercise a disciplinary power under this Part in relation to a Licensed or Authorised Firm, or Person, it must give the Licensed or Authorised Firm, or Person a Decision Notice.

- 5.2.2 A Decision Notice must:

- (A) be in writing;
- (B) give the QFCA's reasons for the decision to take the action to which the notice relates;
- (C) state whether CER Rule 5.7 (Access to QFCA Material) applies and, if so, describe its effect; and
- (D) give an indication of:
 - (i) any right to have the matter referred to the Relevant Review Body within a reasonable period specified in the notice or as required by this Part; and
 - (ii) the procedure on such a reference.

- 5.2.3 In the case of a financial penalty, the Decision Notice must state the amount of the financial penalty and the period within which it is to be paid.

5.3 IMPLEMENTATION OF A DECISION NOTICE

If a Licensed or Authorised Firm, or Person who has received a Decision Notice does not refer the matter to the Relevant Review Body within the time period specified in the notice, the QFCA may take the action specified in the Decision Notice.

5.4 DISCONTINUANCE OF PROCEEDINGS

- 5.4.1 If the QFCA decides not to take the action to which a Decision Notice relates, it must give a notice of discontinuance identifying the proceedings which are being discontinued to the Licensed or Authorised Firm, or Person to whom the Decision Notice was given.

- 5.4.2 If a Licensed or Authorised Firm, or Person to whom a Decision Notice is given does refer the matter to the Relevant Review Body, the Licensed or Authorised Firm, or Person may apply to the Relevant Review Body to stay the action specified in the Decision Notice pending the outcome of the appeal.

5.5 PUBLISHING INFORMATION

Subject to the QFCA Regulations and any other rights and obligations contained in the QFC Law and these CER Rules on the part of the QFCA relating to the publication of information, neither the QFCA nor any Licensed or Authorised Firm, or Person to whom a Decision Notice is given or copied may publish the notice or any details concerning it.

5.6 PUBLICATION OF STATEMENTS

After a statement under CER Rule 4.1 is published, the QFCA must send a copy of it to the Licensed or Authorised Firm, or Person.

5.7 ACCESS TO QFCA MATERIAL

- 5.7.1 If the QFCA gives a Licensed or Authorised Firm, or Person a Decision Notice it must allow the Licensed or Authorised Firm, or Person access to the material on which it relied in taking the decision which gave rise to the obligation to give the notice.
- 5.7.2 The QFCA may refuse a Licensed or Authorised Firm, or Person access to particular material if, in its opinion, allowing access to the material would not be in the public interest or would not be fair (whether to other parties to whom the material relates or otherwise).
- 5.7.3 If the QFCA does not allow a Licensed or Authorised Firm, or Person access to material, it must give them written notice of:
- (A) the refusal; and
 - (B) the reasons for such refusal.

5.8 PROCEDURE IN RELATION TO DECISION NOTICES

- 5.8.1 The QFCA may issue more particularised Rules relating to the procedure that it proposes to follow in relation to the giving of Decision Notices.

- 5.8.2 Subject to CER Rule 4.12 (Procedural Irregularities), when giving a Decision Notice the QFCA must follow its stated procedure.
- 5.8.3 If the QFCA changes the procedure in a material way, it must publish revised Rules or a revised statement.

5.9 POLICY IN RELATION TO PENALTIES

- 5.9.1 The QFCA must prepare and publish a statement of its policy with respect to:
 - (A) the imposition of financial penalties under CER Rule 4.2; and
 - (B) the amount of penalties under CER Rule 4.2.
- 5.9.2 The QFCA's policy in determining the amount of a financial penalty must include a requirement to have regard to:
 - (A) the seriousness of the contravention in question in relation to the nature of the requirement contravened;
 - (B) the extent to which that contravention was deliberate or reckless;
 - (C) whether the Person on whom the penalty is to be imposed is an individual; and
 - (D) the effect on third parties, Clients or Customers and the best interests of the Financial System and the QFC.
- 5.9.3 The QFCA may at any time alter or replace a statement issued under this CER Rule.
- 5.9.4 If a statement published under this CER Rule is altered or replaced, the QFCA must publish the altered or replacement statement.

6. CONTRAVENTIONS

6.1 CONTRAVENTION OF RELEVANT REQUIREMENTS

- 6.1.1 For the purposes of these CER Rules a Licensed or Authorised Firm, or Person contravenes a Relevant Requirement if it:
 - (A) fails to comply with any prohibition or requirement imposed by the QFCA or any undertaking given by them to the QFCA;

- (B) does any act or thing that is prohibited under or breaches a Relevant Requirement;
- (C) omits to do any act or thing that it is required to do under a Relevant Requirement;
- (D) commits an act of fraud or abuses any fiduciary duty which it owes to its Clients or Customers; or
- (E) otherwise commits any contravention described as such in these CER Rules.

6.1.2 Without prejudice to the generality of CER Rule 6.1.1(B), for the purposes of these CER Rules a Licensed or Authorised Firm, or Person contravenes a Relevant Requirement if it:

- (A) knowingly or recklessly provides to the QFCA any information which is false, misleading or deceptive, or conceals information where the concealment of such information is likely to mislead or deceive the QFCA;
- (B) conducts Permitted Activities in or from the QFC in breach of Article 11.2 of the QFC Law; or
- (C) knows or suspects that QFCA action under these CER Rules is being or is likely to be conducted and:
 - (i) falsifies, conceals, destroys or otherwise disposes of a document which it knows or suspects is or would be relevant to such action; or
 - (ii) causes or permits the falsification, concealment, destruction or disposal of such a document,

unless it shows that it had no intention of concealing facts disclosed by the documents from the QFCA or any Nominated Person preparing a report.

6.2 INVOLVEMENT IN CONTRAVENTIONS

- 6.2.1 If a Person is knowingly concerned in the contravention of a Relevant Requirement by another Person (including for the avoidance of doubt, any third party), that Person also commits a contravention of a Relevant Requirement.
- 6.2.2 If an officer of a body corporate is knowingly concerned in the contravention of a Relevant Requirement committed by a body

corporate, the officer also commits a contravention of a Relevant Requirement.

- 6.2.3 If the affairs of a body corporate are managed by its members, CER Rule 6.2.2 applies in relation to the acts and defaults of a member in connection with his functions of management as if he were a director of the body corporate.
- 6.2.4 If a partner (or a Person purporting to act as a partner) is knowingly concerned in a contravention of a Relevant Requirement committed by a partnership in which he is a partner or by all or some of its constituent partners, he also commits a contravention of a Relevant Requirement.
- 6.2.5 If an officer of an unincorporated association (other than a partnership) or a member of its governing body is knowingly concerned in a contravention of a Relevant Requirement committed by the association, that officer or member also commits a contravention of a Relevant Requirement.
- 6.2.6 For the purposes of CER Rule 6.2, officer means a director, member of a committee of management, chief executive, manager, secretary or other similar officer of the body corporate or association.
- 6.2.7 For the purposes of CER Rule 6.2, a Person is knowingly concerned in a contravention of a Relevant Requirement if, and only if, that Person:
 - (A) has aided, abetted, counselled, or procured the contravention;
 - (B) has induced, whether by threats or promises or otherwise, the contravention;
 - (C) has in any way, by act or omission, directly or indirectly, been knowingly involved in or been party to, the contravention; or
 - (D) has conspired with another or others to commit the contravention.

PART 6 – LEGAL SERVICES CODE

1. APPLICATION

The QFCA Rules in this Part 6 shall be referred to as the “**QFC Legal Services Code**” and shall apply to all **Legal Services Firms** and all **QFC Lawyers**.

Definitions

In this **QFC Legal Services Code**:

“Legal Professional Body” means a national, regional or state regulatory or professional association, authority, court, governmental department, society or other entity recognised by the QFCA at its discretion that regulates or licenses lawyers.

“Legal Services Firm” means a firm that is licensed to provide **Legal Services** in or from the QFC.

“QFC Lawyer” means an individual who provides **Legal Services** in or from the QFC on behalf of a **Legal Services Firm** and who, subject to 5.3 below, is licensed by a **Legal Professional Body**.

“Recognised Conduct Rules” has the meaning given in General Rule 16.4.4.

“Recognised Professional Body” has the meaning given in General Rule 16.4.4.

“undertaking” means a pledge or promise given to a **Client** to do something.

2. GENERAL

2.1 **Legal Services Firms** and **QFC Lawyers** must act in a manner which:

- a) promotes the credibility of, and confidence in, the legal profession in the State of Qatar; and
- b) is respectful of the heritage, culture and values of the State of Qatar.

3. INTEGRITY AND TRUST

3.1 **Legal Services Firms** and **QFC Lawyers**:

- a) must act honestly and with integrity;
- b) must promote and protect the rule of law and the proper administration of justice; and
- c) must not abuse the authority or responsibility of their position.

4. CLIENT CARE

- 4.1 **Legal Services Firms** and **QFC Lawyers** must act in the best interests of **Clients**.
- 4.2 **Legal Services Firms** and **QFC Lawyers** must only act for a **Client** on instructions from that **Client**, or from someone authorised to give instructions on that **Client's** behalf.
- 4.3 **Legal Services Firms** and **QFC Lawyers** must ensure that the **Legal Services** or any other services that they (or any individual employed, managed or supervised by them), provide:
- (a) correspond with their **Client's** instructions;
 - (b) are appropriate for their **Client's** needs;
 - (c) are delivered efficiently and in a timely manner;
 - (d) are, where appropriate, subject to effective supervision;
and
 - (e) are carried out professionally and ethically.
- 4.4 **Legal Services Firms** and **QFC Lawyers** must perform all undertakings given by them by any agreed date or, if no such date has been agreed, within a reasonable time.
- 4.5 **Legal Services Firms** and **QFC Lawyers** must communicate clearly, effectively and in a timely manner.
- 4.6 Any fee charged by a **Legal Services Firm** or a **QFC Lawyer** must be fair and transparent.
- 4.7 **Legal Services Firms** and **QFC Lawyers** must keep sufficient records of the work carried out by them and ensure that any complaints received from **Clients** are addressed promptly, fairly and without charge.

5. COMPETENCE

- 5.1 **QFC Lawyers** must only act on matters where they are competent to do so.
- 5.2 **QFC Lawyers** must maintain their professional knowledge and skills required to provide **Legal Services**.

5.3 A **QFC Lawyer** must maintain a membership of a **Legal Professional Body** provided that:

- (a) a **QFC Lawyer** who is a Qatari national but who is not a member of a **Legal Professional Body**, must adhere to the requirements for lawyers of the **Recognised Professional Body** of which their **Legal Services Firm** is a member (other than those requirements relating to residency or nationality or that are practically impossible for the **QFC Lawyer** to comply with); and
- (b) a **QFC Lawyer** who is not a Qatari national and who is unable to maintain membership of a Legal Professional Body due to an inability to meet any applicable residency or nationality requirements (or any other requirements that are practically impossible for the **QFC Lawyer** to comply with), must adhere to the requirements for lawyers of the **Recognised Professional Body** of which their **Legal Services Firm** is a member (other than those requirements relating to residency or nationality or that are practically impossible for the **QFC Lawyer** to comply with).

5.4 **QFC Lawyers** must comply with any applicable training and professional development requirements specified by any **Legal Professional Body** of which the **QFC Lawyer** is a member or, in the case of those QFC Lawyers referred to in 5.3(a) and (b) above, the training and professional development requirements for lawyers of the **Recognised Professional Body** of which their **Legal Services Firm** is a member.

5.5 A **QFC Lawyer** must ensure that any work that they delegate is undertaken by appropriately experienced individuals.

5.6 **QFC Lawyers** must ensure that any individual they manage or supervise:

- (a) is competent to provide the services delegated to them; and
- (b) maintains their professional knowledge and skills required to provide the services delegated to them.

5.7 Legal Services Firms must ensure that each **QFC Lawyer** that provides Legal Services on their behalf:

- (a) is competent to carry out their role;
- (b) has and maintains their professional knowledge and skills required to provide **Legal Services** and;
- (c) complies with any training and professional development requirements specified by the QFCA and any **Legal Professional Body** of which the **QFC Lawyer** is a member (or in the case of those QFC Lawyers referred to in 5.3(a) and (b) above, the training and professional development requirements for lawyers of the **Recognised Professional Body** of which their **Legal Services Firm** is a member).

6. CLIENT MONEY AND ASSETS

6.1 Legal Services Firms and **QFC Lawyers** must properly safeguard any **Client Money** and any other assets entrusted to them by **Clients** and others.

6.2 All Legal Services Firms and **QFC Lawyers** must ensure that **Clients**:

- (a) are fully and clearly aware of any benefit, whether direct or indirect, that they or any individuals they employ, manage or supervise may receive as a result of any instruction to provide **Legal Services**; and
- (b) have given informed written consent for the **Legal Services Firm** or the **QFC Lawyer** or any individuals they employ, manage or supervise to receive such benefit.

7. CONFLICTS OF INTEREST

7.1 Legal Services Firms and **QFC Lawyers** must not act for a **Client** if their own interests conflict with that **Client's** interests or there is a significant risk of such a conflict.

- 7.2 **Legal Services Firms** and **QFC Lawyers** must not act for two or more **Clients** whose interests conflict or where there is a significant risk of their interests conflicting unless:
- (a) all the **Clients** have given informed written consent to the **Legal Services Firm** or **QFC Lawyer** acting for them;
 - (b) where appropriate, the **Clients'** confidential information is protected; and
 - (c) the **Legal Services Firm** is satisfied that it is reasonable in the circumstances to do so.

8. CONFIDENTIALITY AND DISCLOSURE

- 8.1 **Legal Services Firms** and **QFC Lawyers** must maintain the confidentiality of **Client** information unless disclosure is required or permitted by law or the **Client** consents to its disclosure.
- 8.2 **QFC Lawyers** must make a **Client** aware, and **Legal Services Firms** must ensure that any individual acting for a **Client** on a matter makes the **Client** aware, of all information that is material to the **Client's** matter of which they are aware, unless:
- (a) disclosure of such information is prohibited by law;
 - (b) the **Client** gives informed written consent to that information not being disclosed to them;
 - (c) the disclosure of the information may cause serious harm to the **Client** or another **Person**; or
 - (d) the information has been mistakenly disclosed to the **QFC Lawyer** or individual and is subject to legal privilege.
- 8.3 **Legal Services Firms** and **QFC Lawyers** must not act for a **Client** in a matter where they hold confidential information on behalf of another **Client** which is material to that matter unless:
- (a) there are effective safeguards in place to prevent disclosure of the confidential information; or

- (b) the **Client** on behalf of whom they hold such confidential information has given informed written consent to them acting.

9. COMPLIANCE, CO-OPERATION AND INFORMATION REQUIREMENTS.

9.1 **Legal Services Firms** and **QFC Lawyers** must comply with:

- (a) this **QFC Legal Services Code**;
- (b) all applicable **Rules** and **Regulations**; and
- (c) any other applicable regulatory and legislative requirements.

9.2 **Legal Services Firms** must comply with the applicable **Recognised Conduct Rules** and any other requirements of any **Recognised Professional Body** of which they are a member;

9.3 **QFC Lawyers** must comply with the applicable requirements of:

- (a) any **Legal Professional Body** of which they are a member (or in the case of those QFC Lawyers referred to in 5.3(a) and (b) above, the requirements for lawyers of the **Recognised Professional Body** of which their **Legal Services Firm** is a member);
- (b) any applicable **Recognised Conduct Rules**; and
- (c) any other requirements of any **Recognised Professional Body** of which their **Legal Services Firm** is a member and that apply to lawyers providing **Legal Services** on behalf of that **Legal Services Firm**

provided that in the event of a conflict between:

- (a) any of the requirements in this **QFC Legal Services Code** and the requirements of any applicable **Rules** and **Regulations**; or
- (b) any of the requirements in this **QFC Legal Services Code** and the requirements of 9.2 or 9.3 above,

the matter shall be referred to the **QFCA** for resolution.

- 9.4 A **QFC Lawyer** must assist their **Legal Services Firm** to comply with:
- (a) all applicable **Rules** and **Regulations**;
 - (b) the **Recognised Conduct Rules** and any other requirements of any **Recognised Professional Body** applicable to their **Legal Services Firm**; and
 - (c) any other applicable regulatory and legislative requirements.
- 9.5 **Legal Services Firms** must ensure that **QFC Lawyers** that provide **Legal Services** on their behalf comply with this **Legal Services Code** and must have effective systems and controls to ensure that individuals they employ, manage or supervise comply with all applicable **Rules** and **Regulations** and all other applicable regulatory and legislative requirements. **Legal Services Firms** shall continue to be responsible for compliance with all applicable **Rules** and **Regulations** and all other applicable regulatory and legislative requirements where services are carried out through individuals they employ, manage or supervise.
- 9.6 **Legal Services Firms** and **QFC Lawyers** must be able to demonstrate compliance with their obligations.
- 9.7 **Legal Services Firms** and **QFC Lawyers** must cooperate fully and promptly with the **QFCA** and any other regulators that oversee the services they provide and take any remedial action required by the **QFCA** or such other regulator.
- 9.8 Each year **Legal Services Firms** must provide to the **QFCA** in the form specified by the **QFCA**, information regarding their firm and any **QFC Lawyers** they employ. **Legal Services Firms** must notify the **QFCA** promptly of any change to, or inaccuracy or incompleteness in, information previously provided to the **QFCA**.
- 9.9 A **QFC Lawyer** must provide their **Legal Services Firm** with any information about their practice that is required to be submitted to the **QFCA** and must promptly notify their **Legal Services Firm** of any change to, or inaccuracy or incompleteness in, such information.

- 9.10 **Legal Services Firms** and **QFC Lawyers** must ensure that all information that is held by them in respect of their delivery of **Legal Services** is available for inspection by the **QFCA**.
- 9.11 **Legal Services Firms** must respond promptly to the QFCA and provide full and accurate explanations and any information and documentation requested by the **QFCA**.
- 9.12 **Legal Services Firms** and **QFC Lawyers** must, promptly after becoming aware thereof, report to (i) the **QFCA** and (ii) the **Recognised Professional Body** of which they are a member (in the case of a **Legal Services Firm**) or (iii) their **Legal Services Firm** and the **Legal Professional Body** of which they are a member (in the case of a **QFC Lawyer**):
- (a) a serious breach of any **Rules** or **Regulations** (including this **QFC Legal Services Code**); and
 - (b) a serious breach of any applicable **Recognised Conduct Rules** or any matter which may affect their good standing with their **Recognised Professional Body** (in the case of a **Legal Services Firm**); or
 - (c) any matter which may affect their good standing with their **Legal Professional Body** or their ability to remain a member of their **Legal Professional Body** (in the case of a **QFC Lawyer**) or in the case of those QFC Lawyers referred to in 5.3(a) and (b) above, the **Recognised Professional Body** of which their **Legal Services Firm** is a member.
- 9.13 If requested to do so by the **QFCA**, **Legal Services Firms** must investigate whether there have been any serious breaches of any of the provisions referred to in 9.12 above that should be reported to the **QFCA**.
- 9.14 A **QFC Lawyer** must participate in, and cooperate with, any process for handling complaints regarding the **Legal Services** that they or their **Legal Services Firm** provide.
- 9.15 **Legal Services Firms** must monitor and manage all material risks to their business.

10. COURTS, TRIBUNALS AND EVIDENCE

- 10.1 **Legal Services Firms** and **QFC Lawyers** must comply with any applicable order of any court or tribunal.
- 10.2 **QFC Lawyers** must only make submissions that are credible and properly arguable.
- 10.3 **QFC Lawyers** must not tamper with evidence or knowingly give false or misleading information to any court or tribunal, any governmental authority or any other **Person**.
- 10.4 **QFC Lawyers** must not seek to cause a witness or any other person to alter the substance of their evidence.
- 10.5 A **QFC Lawyer** must make the court or tribunal aware of relevant case law and legislation of which the **QFC Lawyer** is aware and which is likely to have a material effect on the outcome of any proceedings.

PART 7 - QFC PROFESSIONAL ACCOUNTANTS' CODE

1. APPLICATION

The QFCA Rules in this Part 7 shall be referred to as the **"QFC Professional Accountants' Code"** and shall apply to all **Accountancy Firms** and **QFC Accountants**.

Definitions

In this **QFC Professional Accountants' Code**:

"AAOIFI" means the Accounting and Auditing Organisation for Islamic Financial Institutions.

"Accountancy Firm" means a firm that is licensed to provide **Accountancy** and/or **Tax Consultancy** in or from the QFC.

"Accountancy Professional Body" means an international, national, regional or state regulatory or professional association, authority, court, governmental department, society or other entity recognized by the QFCA at its discretion that regulates or licenses accountants.

"IAASB" means the International Auditing and Assurance Standards Board of the International Federation of Accountants.

"IESBA" means the International Ethics Standards Board for Accountants of the International Federation of Accountants.

"QFC Accountant" means an individual who provides **Accountancy** and/or **Tax Consultancy** in or from the QFC on behalf of an **Accountancy Firm** and who is licensed by an **Accountancy Professional Body**.

"Recognised Conduct Rules" has the meaning given in General Rule 16.4.4.

"Recognised Professional Body" has the meaning given in General Rule 16.4.4.

2. GENERAL OBLIGATIONS

- 2.1 An **Accountancy Firm** and a **QFC Accountant** must provide **Accountancy** and **Tax Consultancy** in a manner that:

- a) promotes the credibility of, and confidence in, the accountancy profession in the State of Qatar; and
- b) is respectful of the heritage, culture and values of the State of Qatar.

3. ETHICAL OBLIGATIONS

3.1 An **Accountancy Firm** and a **QFC Accountant** must comply with those provisions of the code of ethics as issued and amended from time to time by the **IESBA** that are applicable to the services they provide.

3.2 An **Accountancy Firm** and a **QFC Accountant** must comply with those provisions of the code of ethics as issued and amended from time to time by the **AAOIFI** that are applicable to the services they provide.

4. ACCOUNTING STANDARDS

4.1 An **Accountancy Firm** and a **QFC Accountant** must, where instructed by a **Client** to prepare books or records of account, balance sheets, and other financial, accounting and related documents, do so in accordance with IFRS, US GAAP and UK GAAP or such other principles or standards approved in writing by the **QFCA**.

4.2 An **Accountancy Firm** and a **QFC Accountant** must, where instructed by a **Client** to prepare or certify a report on audits or examinations of books or records of account, balance sheets, and other financial, accounting and related documents they examine, do so in accordance with IFRS, US GAAP, UK GAAP or other principles or standards approved in writing by the **QFCA**.

4.3 Where applicable, an **Accountancy Firm** and a **QFC Accountant** must apply:

- (a) the international standards as issued and amended from time to time by the **IAASB**; and
- (b) the accounting standards as issued and amended from time to time by the **AAOIFI**.

5. CLIENT CARE

- 5.1 An **Accountancy Firm** and a **QFC Accountant** must perform a pledge or promise given to a **Client** by the agreed date or, if no such date has been agreed, within a reasonable time after the pledge or promise is given.
- 5.2 An **Accountancy Firm** and a **QFC Accountant** must communicate clearly, effectively and in a timely manner.
- 5.3 A fee charged by an **Accountancy Firm** or a **QFC Accountant** must be fair and transparent.
- 5.4 An **Accountancy Firm** and a **QFC Accountant** must:
- (a) keep sufficient records of the work carried out by them;
 - (b) ensure that any complaints received from **Clients** are addressed promptly, fairly and without charge; and
 - (c) participate in, and cooperate with, any process for handling complaints including in respect of any regarding the **Accountancy** or **Tax Consultancy** that they provide.

6. COMPETENCE

- 6.1 A **QFC Accountant** must be a member of an **Accountancy Professional Body**.
- 6.2 A **QFC Accountant** must comply with any applicable training and professional development requirements specified by any **Accountancy Professional Body** of which the **QFC Accountant** is a member.
- 6.3 **QFC Accountants** must ensure that any individual they manage or supervise:
- (a) is competent to provide the services delegated to them; and
 - (b) maintains their professional knowledge and skills required to provide the services delegated to them.
- 6.4 An **Accountancy Firm** must ensure that each **QFC Accountant** that provides **Accountancy** or **Tax Consultancy** on its behalf:
- (a) is competent to carry out their role;

- (b) has and maintains their professional knowledge and skills required to provide **Accountancy** or **Tax Consultancy** as applicable; and
- (c) complies with any training and professional development requirements specified by the QFCA and any **Accountancy Professional Body** of which the **QFC Accountant** is a member.

7. ANTI-MONEY LAUNDERING

- 7.1 An **Accountancy Firm** to which the **AML/CFT Rules** apply must:
- (a) comply with their obligations under the **AML/CFT Rules**; and
 - (b) have effective systems and controls to ensure compliance with any applicable requirements in the **AML/CFT Rules**.
- 7.2 A **QFC Accountant** must not knowingly be concerned in the contravention by a **Person** of the **AML/CFT Rules**.

8. COMPLIANCE, CO-OPERATION AND INFORMATION REQUIREMENTS

- 8.1 An **Accountancy Firm** and a **QFC Accountant** must comply with:
- (a) all applicable **Rules** and **Regulations** (including this **QFC Professional Accountants' Code**); and
 - (b) any other applicable regulatory or legislative requirements.
- 8.2 An **Accountancy Firm** must comply with the applicable **Recognised Conduct Rules** and any other requirements of any **Recognised Professional Body** of which it is a member provided that if an **Accountancy Firm** is not a member of a **Recognised Professional Body**, it must comply with the **Recognised Conduct Rules** and any other requirements of such other **Recognised Professional Body** as may be nominated or approved by the QFCA.
- 8.3 A **QFC Accountant** must comply with the applicable requirements of:

- (a) any **Accountancy Professional Body** of which they are a member; and
- (b) any **Recognised Professional Body** of which their **Accountancy Firm** is a member (or, if an **Accountancy Firm** is not a member of a **Recognised Professional Body**, the requirements of any **Recognised Professional Body** the **Accountancy Firm** is required to comply with under this **QFC Professional Accountants Code**) and that apply to accountants providing **Accountancy** or **Tax Consultancy** on behalf of that **Accountancy Firm**.

8.4 An **Accountancy Firm** and a **QFC Accountant** must refer a conflict between:

- (a) any of the requirements in this **QFC Professional Accountants' Code** and the requirements of any applicable **Rules** and **Regulations**; or
- (b) any of the requirements in this **QFC Professional Accountants' Code** and the requirements of 8.2 or 8.3 above,

to the **QFCA** for resolution.

8.5 A **QFC Accountant** must assist their **Accountancy Firm** to comply with its obligations under this **QFC Professional Accountants' Code**.

8.6 An **Accountancy Firm** must ensure that any **QFC Accountant** that provides **Accountancy** or **Tax Consultancy** on their behalf complies with this **QFC Professional Accountants' Code** and must have effective systems and controls to ensure that individuals they employ, manage or supervise comply with all other applicable **Rules** and **Regulations** and all other applicable regulatory and legislative requirements. An **Accountancy Firm** shall continue to be responsible for compliance with all applicable **Rules** and **Regulations** and all other applicable regulatory and legislative requirements where services are carried out through individuals they employ, manage or supervise.

8.7 An **Accountancy Firm** and a **QFC Accountant** must be able to demonstrate compliance with their obligations.

8.8 An **Accountancy Firm** and a **QFC Accountant** must cooperate fully and promptly with the **QFCA** and any other regulators that

oversee the services they provide and take any remedial action required by the **QFCA** or such other regulator.

- 8.9 Each year an **Accountancy Firm** must provide to the **QFCA** in the form specified by the **QFCA**, information regarding their firm and any **QFC Accountant** they employ. An **Accountancy Firm** must notify the **QFCA** promptly of any changes to, or inaccuracy or incompleteness in, information previously provided to the **QFCA**.
- 8.10 A **QFC Accountant** must provide their **Accountancy Firm** with any information about their practice that is required to be submitted to the **QFCA** and must promptly notify their **Accountancy Firm** of any changes to, or inaccuracy or incompleteness in, such information.
- 8.11 An **Accountancy Firm** and a **QFC Accountant** must ensure that all information that is held by them in respect of their delivery of **Accountancy** or **Tax Consultancy** is available for inspection by the **QFCA**.
- 8.12 An **Accountancy Firm** must respond promptly to the **QFCA** and provide full and accurate explanations and any information and documentation requested by the **QFCA**.
- 8.13 An **Accountancy Firm** and a **QFC Accountant** must, promptly after becoming aware thereof, report to (i) the **QFCA** and (ii) the **Recognised Professional Body** of which they are a member (in the case of an **Accountancy Firm**) or (iii) their **Accountancy Firm** and the **Accountancy Professional Body** of which they are a member (in the case of a **QFC Accountant**):
- (a) a serious breach of any **Rules** or **Regulations** (including this **QFC Professional Accountants' Code**); and
 - (b) a serious breach of any applicable **Recognised Conduct Rules** or any matter which may affect their good standing with their **Recognised Professional Body** (in the case of an **Accountancy Firm**); or
 - (c) any matter which may affect their good standing with their **Accountancy Professional Body** or their ability to remain a member of their **Accountancy Professional Body** (in the case of a **QFC Accountant**).
- 8.14 If requested to do so by the **QFCA**, an **Accountancy Firm** must investigate whether there have been any serious breaches of any

of the provisions referred to in 8.13 that should be reported to the **QFCA**.

- 8.15 An **Accountancy Firm** must monitor and manage all material risks to its business.

PART 8 TOKEN SERVICE PROVIDERS' CODE

1. APPLICATION

The QFCA Rules in this Part 8 shall be referred to as the **"Token Service Providers' Code"** and shall apply to all **TSPs**.

Definitions

In this **Token Service Providers' Code**:

"Client" means any Person who enters into a transaction with a TSP;

"Governing Body" means:

- (a) for a company or a company limited by guarantee, its board of directors;
- (b) for a limited partnership, its general partner;
- (c) for a trust, its trustee or trustees;
- (d) for a foundation, its council; and
- (e) for any other entity, its board of directors, committee of management or other governing body,

"Permitted Token" has the meaning set out in the Digital Asset Regulations 2024; and

"Token Infrastructure" has the meaning set out in the Digital Asset Regulations 2024.

2. CLIENT TERMS AND CONDITIONS

A TSP must not carry on a Token Service for a Client unless:

- (A) the TSP has terms and conditions containing key information about provision of the service; and
- (B) the TSP provides the terms and conditions to the Client in sufficient time to enable the Client to make an informed decision about the provision of the service by the TSP (unless the TSP can demonstrate that it is impracticable to provide the terms and conditions in that time frame in the circumstances, in which case the TSP must provide the

terms and conditions to the Client as soon as is reasonably practicable).

3. RISK DISCLOSURE

A TSP must not carry on a Token Service for a Client unless the TSP has disclosed to the Client all material risks related to the service before providing the service to the Client (or, if the TSP can demonstrate that it is impracticable to do so beforehand, as soon as is reasonably practicable).

4. MANAGEMENT, SYSTEMS AND CONTROLS

Governing body and senior management responsibilities

4.1 A TSP must:

- (A) appropriately apportion its significant responsibilities between the members of its Governing Body and its senior management;
- (B) allocate to the individual registered to carry out the TSP's Senior Executive Function the functions of:
 - (i) apportioning significant responsibilities; and
 - (ii) overseeing the establishment and maintenance of systems and controls;
- (C) establish, maintain and regularly review systems and controls, appropriate to the nature, scale and complexity of the TSP's operations, that ensure the TSP's affairs are managed effectively and responsibly by its senior management;
- (D) establish and implement appropriate measures to ensure that:
 - (i) the roles and responsibilities assigned to the TSP's Governing Body are clearly defined; and
 - (ii) to the extent that roles and responsibilities are delegated by the Governing Body, there are clear reporting lines applicable to the individuals to whom any aspect of those roles and responsibilities is delegated; and
- (E) ensure that key duties and functions are segregated such that duties and functions to be performed by the same individual do not conflict with each other.

Risk management, including technology risks

4.2 A TSP must establish and maintain risk management systems and controls to enable it to identify, assess, mitigate, control and monitor its material risks, including in relation to the risks of inadequately providing for:

- (A) the maintenance and development of systems and architecture (including code version control, implementation of updates, issue resolution, and regular internal and third party testing);

- (B) security measures and procedures for the safe storage and transmission of data, including in relation to the protection and encryption of passwords, keys or other means of access or verification;
- (C) business continuity and client-engagement planning in the event of both planned and unplanned system outages;
- (D) procedures for the creation and management of services, interfaces and channels provided by or to third parties (as recipients and providers of data or services); and
- (E) the management and active testing of changes in the underlying protocol or programming of a Permitted Token or Token Infrastructure upon which a Permitted Token is generated (including those that result in a fork in the infrastructure).

Compliance and internal audit

4.4 A TSP must:

- (A) establish and maintain compliance arrangements, including processes and procedures to ensure that the TSP complies with all applicable laws, regulations and rules in the QFC;
- (B) appoint an individual as compliance officer with responsibility for monitoring the TSP's compliance with all applicable laws, regulations and rules and for taking steps to ensure such compliance;
- (C) ensure that the compliance officer has:
 - (i) access to sufficient resources to perform their duties objectively and independently of operational and business functions; and
 - (ii) unrestricted access to relevant records and to the Governing Body and senior management;
- (D) establish and maintain monitoring and reporting processes and procedures to ensure that any compliance breaches are readily identified, reported and promptly acted upon;
- (E) establish and maintain an independent internal audit function with responsibility for monitoring the appropriateness and effectiveness of the TSP's processes, procedures, systems and controls, including conducting a review, at least annually, of the Token Infrastructure and other technology used by the TSP; and
- (F) establish and maintain arrangements to provide the TSP's Governing Body and senior management with the information necessary to organise, monitor and control its activities, as well as comply with applicable laws, regulations and rules in the QFC and to manage risks.

Staff conduct

4.5 A TSP must:

- (A) ensure that its employees are fit and proper to perform the functions assigned to them; and

- (B) establish and maintain systems and controls to ensure that the TSP and its employees do not engage in conduct constituting a crime under any laws of the State.

Outsourcing

- 4.6 A TSP must inform the QFCA about any arrangements whereby the TSP outsources any of its functions or activities directly related to the Token Services it provides (including its internal audit function, or any part of it).
- 4.7 A TSP may outsource its internal audit function, or any part of it, only if authorised to do so by its Governing Body.
- 4.8 A TSP that outsources any such function or activity is not relieved of its regulatory obligations and remains responsible for compliance with applicable laws, regulations and rules in the QFC in relation to any outsourced function or activity.
- 4.9 A TSP considering outsourcing such a function or activity must, when assessing any potential third party service provider, satisfy itself that the service provider maintains robust processes and procedures regarding the function or activity to be outsourced (including, for example, in relation to testing and technology security).

Information security

- 4.10 A TSP must:
 - (A) establish and maintain a plan describing the security arrangements relating to:
 - (i) Permitted Tokens in relation to which the TSP carries on a Token Service;
 - (ii) any keys or other means of verification related to those Permitted Tokens;
 - (iii) the privacy of sensitive personal data (within the meaning given by the QFC Data Protection Regulations);
 - (iv) the TSP's networks and systems and any other networks or systems utilised by the TSP;
 - (v) any cloud-based services utilised by the TSP;
 - (vi) the TSP's physical facilities; and
 - (vii) documents and document storage;
 - (B) establish and maintain policies and procedures to ensure the TSP acts in accordance with the QFC Data Protection Regulations and QFC Data Protection Rules;
 - (C) establish and maintain policies and procedures for recovery in the event that:
 - (i) a client loses access to their credentials or the security of those credentials is compromised; or
 - (ii) a key, or other means of access, for Permitted Tokens in relation to which the TSP carries on a Token Service

are lost or the security of the key, or other means of access, is compromised;

- (D) take steps to ensure that public and private cloud-service providers utilised by the TSP do not expose the TSP to security risks;
- (E) establish and maintain a set of well-defined and documented access management procedures;
- (F) annually review all service level agreements with third party providers for serviceability and security of the systems;
- (G) have clearly defined roles and responsibilities delineating the operations of any third party service provider from those of the TSP;
- (H) limit physical access to systems to the relevant personnel and access and monitor such access on an ongoing basis; and
- (I) store, and be in the position to retrieve, data held on a cloud platform utilised by the TSP for such duration as required under any relevant regulations, these QFCA Rules and any other relevant rules.

4.10 A TSP may use Token Infrastructure to store its data, but in doing so it must be able to provide this data, in as easily accessible a format as possible, to the QFCA when required.

Whistle-blower protections

4.11 A TSP must establish and maintain appropriate policies and procedures to:

- (A) facilitate the reporting by any individual of concerns relating to the TSP's compliance with these Rules and any other applicable laws, regulations or rules; and
- (B) where such concerns are reported, assess and, where appropriate, escalate them.

Endnotes

1 Abbreviation key

a	=	after	ins	=	inserted/added
am	=	amended	om	=	omitted/repealed
amdt	=	amendment	orig	=	original
app	=	appendix	par	=	paragraph/subparagraph
art	=	article	prev	=	previously
att	=	attachment	pt	=	part
b	=	before	r	=	rule/subrule
ch	=	chapter	renum	=	renumbered
def	=	definition	reloc	=	relocated
div	=	division	s	=	section
g	=	guidance	sch	=	schedule
glos	=	glossary	sdiv	=	subdivision
hdg	=	heading	sub	=	substituted

2 Rules history

QFCA Rules 2007

Issued 15 May 2007
Commenced 15 May 2007
Version No. 1

as amended by

QFCA Rules (Miscellaneous Amendments) 2011

Made 3 October 2011
Commenced 3 October 2011
Version No. 2

QFCA Rules (Miscellaneous Amendments) 2014

Made 23 September 2014
Commenced 23 September 2014
Version No. 3

QFCA Rules (Miscellaneous Amendments) 2014

Made 12 June 2016

Commenced 12 June 2016
Version No. 4

QFCA Rules (Miscellaneous Amendments) 2017

Made 3 October 2017
Commenced 3 October 2017
Version No. 5

QFCA Rules (Miscellaneous Amendments) 2017

Made 7 December 2017
Commenced 7 December 2017
Version No. 6

QFCA Rules (Miscellaneous Amendments) 2019

Made 25 June 2019
Commenced 25 June 2019
Version No. 7

QFCA Rules (Miscellaneous Amendments) 2020

Made 03 February 2020
Commenced 03 February 2020
Version No. 8

QFCA Rules (Miscellaneous Amendments) 2021

Made 06 September 2021
Commenced 06 September 2021
Version No. 9

QFCA Rules (Miscellaneous Amendments) 2021

Made 16 December 2021
Commenced 16 December 2021
Version No. 10

QFCA Rules (Miscellaneous Amendments) 2022

Made: 06 April 2022
Commenced: 06 April 2022
Version No. 11

QFCA Rules (Miscellaneous Amendments) 2022

Made: 01 June 2022
Commenced: 01 June 2022
Version No. 12

QFCA Rules (Miscellaneous Amendments) 2022

Made: 05 July 2022
Commenced: 05 July 2022
Version No. 13

QFCA Rules (Miscellaneous Amendments)2022

Made: 06 December 2022
Commenced: 06 December 2022
Version No. 14

QFCA Rules (Miscellaneous Amendments)2023

Made: 16 March 2023
Commenced: 16 March 2023
Version No. 15

QFCA Rules (Miscellaneous Amendments) 2023

Made: 26 June 2023
Commenced: 1 September 2023
Version No. 16

QFCA Rules (Miscellaneous Amendments) 2023

Made: 26 September 2023
Commenced: 19 October 2023
Version No. 17

QFCA Rules (Miscellaneous Amendments) 2024

Made: 11 June 2024
Commenced: 01 September 2024
Version No. 18

QFCA Rules (Miscellaneous Amendments) 2025

Made: 14 January 2025
Commenced: 16 February 2025
Version No. 19

3 Amendment history

Application

1	am 2019-06
1(Table1)	am 2022-06

Interpretation

f	am 2017-10
f	ins 2022-06

Definition

Accountancy	ins 2023-06
Accreditation	ins 2023-06
Activities of LLC(G)s	ins 2023-06
AML/CFT Law	am 2020-02
AML/CFT Rules	am 2020-02
Applicant	am 2022-04
Application	am 2022-04
Application(A)	am 2022-04
Application(B)	ins 2022-04
Application(C)	ins 2022-04

Entity	am 2017-10
Entity	am 2023-06
Guidance	ins 2022-04
Legal Services	ins 2023-06
Non-Regulated Activities	am 2023-06
Non- Regulated Activities	am 2023-10
Non-Regulated Permitted Activities	am 2023-10
Operating a Token Exchange	ins 2024-09
Person	am 2019-06
Private Credit Rating	ins 2023-06
QFC	ins 2022-04
QFC Entity	am 2019-06
Rules	am 2017-10
Rules	am 2019-06
Ship Broking and Shipping Agents	ins 2023-06
Structure-Based Activities	ins 2023-10
Support Service Provider	ins 2023-06
Tax Consultancy	ins 2023-06
Token Service Provider	ins 2024-09
Token	ins 2024-09
Token Custody Services	ins 2024-09
Token Services	ins 2024-09
Token Transfer Services	ins 2024-09
Validation	ins 2024-09

General Rules

r3	am 2011-01
r11.4.1(B)	am 2011-01
r11.4.1(B)	am 2011-01
r12.2	am 2011-01
r14.2.3	am 2011-01

Licensed Firm Assets Rules (LFAR)

r4.4.1	am 2011-01
r4.9.2	am 2011-01
r5.3	am 2011-01

pt1 Application, Interpretation and Definitions

r1	am 2014-02
r3	am 2014-02

pt2 General Rules

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r2B.2.2(C)(iv)	ins 2023-10
r2B.2.3	ins 2023-10
r3.3	am 2014-02
r3.3.1	am 2014-02
r3.3.2	ins 2014-02
r3.3.3	ins 2014-02

r3.3.4	ins 2014-02
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r3.3.6	ins 2014-02
r4.1	am 2014-02
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r4.2(B)	am 2014-02
r4.2(A)	am 2014-02
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r4.2.3	am 2014-02
r4.2.3	am 2019-06
r4.3.2	am 2014-02
r5.2.1(A)(i)	am 2014-02
r5.2.1(A)(ii)	am 2014-02
r5.2.1(B)	am 2014-02
r5.2.1(C)(i)	am 2014-02
r5.2.1(C)(ii)	am 2014-02
r5.2.2	am 2014-02
r5.2.2	am 2019-06
r6.3.3	am 2014-02
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r7.2.2(E)	am 2019-06
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r8	om 2024-09
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r8.2.1	am 2014-02
r8.2.1(1)	ins 2014-02
r8.2.1(2)	ins 2014-02
r8.2.1(2)	am 2022-06
r8.2.2	am 2014-02
r8.4.5	am 2014-02
r8.4.5	am 2019-06
r8.5.1	am 2014-02
r8.6	om 2014-02
r8a	ins 2019-06
r8a.1	ins 2019-06
r8a.1	ins 2020-02
r8a.1	def 2021-09
r8a.1	def 2021-09
r8a.1	def 2021-09

r8a.1	def 2021-09
r8a.1	def 2021-12
r8a.1	ins 2022-06
r8a.1	ins 2022-06
r8a.1	am 2022-06
r8a.1	am 2022-06
r8a.1	am 2022-06
r8a.1	am 2022-06
r8a.1(A)	ins 2021-12
r8a.2	ins 2019-06
r8a.2(B)	ins 2021-09
r8a.2(C)	ins 2022-06
r8a.3	ins 2019-06
r8a.3(A)	am 2022-06
r8a.3(A)(i)(a)	am 2021-09
r8a.3(A)(i)(a)	am 2022-06
r8a.3(A)(i)(b)	am 2021-09
r8a.3(A)(i)(b)	am 2022-06
r8a.3(A)(i)(d)	am 2022-06
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r8a.3(A)(iii)(b)	am 2022-06
r8a.3(A)(iv)(c)	am 2022-06
r8a.3(A)(iv)(d)	am 2022-06
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r8a.3(D)(i)	am 2022-06
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r8a.3(G)	am 2022-06
r8a.3(H)	del 2022-06
r8a.4	ins 2019-06
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r8a.4	am 2021-12
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r8a.4(A)(a)	am 2022-06
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r8a.4(D)	am 2022-06
r8a.4(D)(i)	am 2021-09
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r8a.4(D)(ii)	am 2021-09
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r8a.4(D)(ii)(a)	am 2022-06
r8a.4(D)(ii)	del 2022-06
r8a.4(D)(ii)(b)	ins 2022-06
r8a.4(D)(iii)	am 2021-09
r8a.4(D)(iii)	del 2022-06
r8a.4(E)	ins 2021-12
r8a.4(E)	am 2022-06
r8a.5	ins 2019-06
r8a.5	am 2022-06
r8a.5(A)	am 2022-06
r8a.5(A)	om 2024-09
r8a.5(A)(i)	am 2022-06
r8a.5(A)(ii)	am 2022-06
r8a.5(B)	ins 2022-06
r8a.5(B)	am 2024-09
r8a.5(C)	am 2022-06
r8a.5(C)	am 2024-09
r8a.5(D)	ins 2022-06
r8a.5(D)	del 2024-09
r8a.6	ins 2019-06
r8a.6(A)	am 2022-06
r8a.6(A)(i)	am 2022-06
r8a.6(A)(i)(h)	am 2022-06
r8a.6(A)(i)(j)	am 2021-09
r8a.6(A)(i)(j)	am 2022-06
r8a.6(A)(ii)	am 2022-06
r8a.6(A)(ii)(a)	am 2022-06
r8a.6(A)(ii)(b)	am 2022-06
r8a.6(A)(ii)(d)	am 2022-06
r8a.6(A)(ii)(e)	am 2022-06
r8a.6(A)(ii)(f)	am 2022-06
r8a.6(A)(ii)(g)	am 2022-06
r8a.6(A)(ii)(h)	am 2022-06
r8a.6(A)(ii)(i)	am 2021-09
r8a.6(A)(ii)(i)	del 2022-06

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r8a.7	am 2020-02
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r8a.7	am 2022-06
r8a.7(A)(i)	am 2022-06
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r8a.7(B)	ins 2022-06
r8a.7(C)	am 2022-06
r8a.7(C)(i)	ins 2022-06
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r8a.7(D)(ii)	am 2022-06
r8a.7(D)(iii)	am 2022-06
r8a.7(D)(iv)	ins 2022-06
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r8a.9	ins 2019-06
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r8a.9(A)(i)	am 2022-06
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r8a.11(B)(ii)	am 2022-06
r8a.12	ins 2019-06
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r8a.12	am 2021-12
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r8a.12(B)(iii)	am 2021-12
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r8a.12(C)(i)	ins 2021-12
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r8a.13	ins 2019-06
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r8a.15(C)(i)	am 2022-06
r8a.15(C)(ii)	am 2022-06
r8a.15(D)	am 2022-06
r8a.15(D)(i)	am 2022-06
r8a.15(D)(ii)	am 2022-06
r8a.15(D)(iii)_	am 2022-06
r8a.15(D)(iv)	am 2022-06
r8a.15(D)(iv)(a)	am 2022-06
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r8a.15(D)(iv)(c)	am 2022-06
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r8a.15(E)	am 2022-06
r8a.16	ins 2019-06
r8a.16	am 2020-02
r8a.16	am 2021-12
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r8a.16(A)	am 2021-12
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r10.8	ins 2023-06
r11.1	am 2014-02
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r11.2	ins 2019-06
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r11.3.1(B)	om 2023-06
r11.3.1	am 2023-06
r11.3.2	ins 2014-02
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r11.3.2	am 2023-06
r11.3.3	ins 2014-02
r11.4	am 2014-02
r11.4.1	am 2014-02
r11.4.1	am 2024-09
r11.4.1(A)	am 2024-09
r11.4.1(B)	del 2024-09
r11.4.2	am 2014-02
r12.1	am 2014-02
r12.2.1	am 2014-02
r12.2.3	am 2014-02
r12.3	ins 2014-02
r13.1	am 2014-02
r13.1	am 2022-04
r13.2.2	am 2022-04
r13.3	ins 2022-04
r13.3.4	am 2022-06
r13.3.9A	ins 2024-09
r13.3.9B	ins 2024-09
r13.3.10(Interest Holder)(D)	am 2023-06
r14.1	am 2014-02
r15.1	am 2014-02
r16.1	am 2014-02
r16.1	am 2023-06
r16.2 (section)	sub 2023-06
r16.2.1	am 2014-02
r16.2.2(C)	am 2014-02
r16.2.4	am 2014-02
r16.2.4	am 2023-06
r16.2.5	am 2023-06
r16.2.6	am 2023-06
r16.2.7	am 2023-06
r16.3	am 2014-02
r16.3	sub 2023-06

r16.3.1(E)	am 2022-07
r16.3.3	am 2014-02
r16.4.1	am 2014-02
r16.4.1	am 2023-06
r16.4.2	am 2014-02
r16.4.2	am 2023-06
r16.4.3	am 2014-02
r16.4.3	am 2023-06
r16.4.5	am 2014-02
r16.4.6	am 2014-02
r16.4.6	am 2023-06
r16.5.1	am 2014-02
r16.5.1	am 2023-06
r16.5.2	am 2014-02
r16.5.2	am 2023-06
r16.5.3	am 2014-02
r16.5.3	am 2023-06
r16.6	am 2014-02

sch2	am 2014-02
sch3	am 2020-02
sch3(1.1)	am 2021-12
sch3(1.1)	am 2022-06
sch4	am 2014-02
sch4(1.1)	ins 2023-06
sch4(1.1)	am 2025-02
sch4(1.1)(a)	ins 2023-06
sch4(1.1)(a)	del 2025-02
sch4(1.1)(b)	ins 2023-06
sch4(1.1)(b)	del 2025-02
sch4(1.2)	ins 2023-06
sch4(1.2)(A)	ins 2024-09
sch4(1.2)(B)	ins 2024-09
sch4(1.3)	ins 2023-06
sch4(1.5)	ins 2023-10
sch4(1.6)	ins 2023-10
sch4(2.2)(2)	am 2023-06
sch5	am 2014-02
sch5 (first para)	am 2023-06
sch5(A)	am 2023-06

sch5(B)	am 2023-06
sch5(C)	am 2023-06
sch5(D)	am 2023-06
sch5(E)	am 2023-06
sch5(F)	am 2023-06
sch5(FA)	ins 2024-09

pt3 Conduct of Business Rules

r1.2	am 2014-02
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pt4 Licensed Firm Assets Rules (LFAR)

r1	am 2014-02
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pt5 Compliance and Enforcement Rules

r1	am 2019-06
r2	am 2022-12
r3.1.1	am 2019-06
r3.1.2	am 2019-06
r3.1.4	ins 2019-06
r3.2.4	am 2019-06
r3.2.5	am 2019-06
r3.2.6	am 2019-06
r3.4.2	am 2023-06
r3.4.2	am 2019-06
r3.4.6	am 2019-06
r3.6.1	am 2019-06
r4.1	am 2019-06
r4.2.1	am 2019-06
r4.2.2	am 2019-06
r4.3.1	am 2019-06
r4.4.1	am 2019-06
r4.4.2	am 2019-06
r4.4.3	am 2019-06
r4.5.1	am 2019-06
r4.5.2	am 2019-06
r4.5.3	am 2019-06
r4.6.1	am 2019-06
r4.6.2	am 2019-06
r4.6.3	am 2019-06

r4.7	am 2019-06
r4.8	am 2019-06
r4.9	am 2019-06
r4.9	am 2021-12
r4.12.2	am 2019-06
r5.1.1	am 2019-06
r5.1.1(A)	am 2023-03
r5.1.2	am 2023-03
r5.1.3	am 2019-06
r5.1.4	ins 2023-03
r5.1.5	ins 2023-03
r5.2.1	am 2019-06
r5.3	am 2019-06
r5.4.1	am 2019-06
r5.4.2	am 2019-06
r5.5	am 2019-06
r5.6	am 2019-06
r5.7.1	am 2019-06
r5.7.2	am 2019-06
r5.7.3	am 2019-06
r6.1.1	am 2019-06
r6.1.2	am 2019-06
r6.2.3	am 2014-02
r6.2.6	am 2014-02
r6.2.1	am 2017-10
r2	am 2016-06

pt6 Legal Services Code

pt6	ins 2017-10
r1	ins 2017-10
r2	ins 2017-10
r2.1	ins 2017-10
r3	ins 2017-10
r3.1	ins 2017-10
r4	ins 2017-10
r4.1	ins 2017-10
r4.2	ins 2017-10
r4.3	ins 2017-10
r4.4	ins 2017-10
r4.5	ins 2017-10
r4.6	ins 2017-10

r4.7	ins 2017-10
r5	ins 2017-10
r5.1	ins 2017-10
r5.2	ins 2017-10
r5.3	ins 2017-10
r5.4	ins 2017-10
r5.5	ins 2017-10
r5.6	ins 2017-10
r5.7	ins 2017-10
r6	ins 2017-10
r6.1	ins 2017-10
r6.2	ins 2017-10
r7	ins 2017-10
r7.1	ins 2017-10
r7.2	ins 2017-10
r8	ins 2017-10
r8.1	ins 2017-10
r8.2	ins 2017-10
r8.3	ins 2017-10
r9	ins 2017-10
r9.1	ins 2017-10
r9.1(a)	am 2022-06
r9.2	ins 2017-10
r9.3	ins 2017-10
r9.3(a)	am 2022-06
r9.4	ins 2017-10
r9.5	ins 2017-10
r9.6	ins 2017-10
r9.7	ins 2017-10
r9.8	ins 2017-10
r9.9	ins 2017-10
r9.10	ins 2017-10
r9.11	ins 2017-10
r9.12	ins 2017-10
r9.13	ins 2017-10
r9.14	ins 2017-10
r9.15	ins 2017-10
r10	ins 2017-10
r10.1	ins 2017-10
r10.2	ins 2017-10
r10.3	ins 2017-10
r10.4	ins 2017-10
r10.5	ins 2017-10

pt7 Professional Accountants Code

pt7	ins 2017-12
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r1	ins 2017-12
r1(def) (Accountancy Firm)	am 2023-06
r1(def) (QFC Accountant)	am 2023-06
r2	ins 2017-12
r2.1	ins 2017-12
r2.1	am 2023-06
r3	ins 2017-12
r3.1	ins 2017-12
r4	ins 2017-12
r4.1	ins 2017-12
r4.2	ins 2017-12
r4.3	ins 2017-12
r4.4	ins 2017-12
r5	ins 2017-12
r5.1	ins 2017-12
r5.2	ins 2017-12
r5.3	ins 2017-12
r5.4	ins 2017-12
r5.4(c)	am 2023-06
r6	ins 2017-12
r6.1	ins 2017-12
r6.2	ins 2017-12
r6.3	ins 2017-12
r6.4	ins 2017-12
r6.4	am 2023-06
r6.4(b)	am 2023-06
r7	ins 2017-12
r7.1	ins 2017-12
r7.2	ins 2017-12
r8	ins 2017-12
r8.1	ins 2017-12
r8.2	ins 2017-12
r8.3	ins 2017-12
r8.3(b)	am 2023-06
r8.3	ins 2017-12
r8.4	ins 2017-12
r8.5	ins 2017-12
r8.6	ins 2017-12
r8.6	am 2023-06
r8.7	ins 2017-12
r8.8	ins 2017-12
r8.9	ins 2017-12
r8.10	ins 2017-12
r8.11	ins 2017-12
r8.11	am 2023-06
r8.12	ins 2017-12

r8.13	ins 2017-12
r8.14	ins 2017-12
r8.15	ins 2017-12

pt8 Token Service Providers Code ins 2024-09

r1	ins 2024-09
r2	ins 2024-09
r3	ins 2024-09
r4	ins 2024-09